

# **Richland County CUSD #1**



## *Educational Support Employee Handbook*

**Effective Date: July 24, 2025**

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# Welcome

Welcome to Richland County CUSD #1. We are pleased that you have joined our district. It takes a team of teachers, educational support staff, and administrators to continue the successful education of students in our district.

We are fortunate to have outstanding employees that work as a team and provide for a successful district. You have been carefully chosen as a team member because you exhibited the characteristics which will allow us to continue to provide a quality education for our students. Welcome to our team.

Sincerely,

Jason Fox, Superintendent  
Richland County CUSD #1

## **District Policies**

## **EQUAL EMPLOYMENT OPPORTUNITY AND MINORITY RECRUITMENT (5:10)**

The School District shall provide equal employment opportunities to all persons regardless of their race; color; creed; religion; national origin; sex; sexual orientation; age; ancestry; marital status; arrest record; military status; order of protection status; unfavorable military discharge; citizenship status provided the individual is authorized to work in the United States; use of lawful products while not at work; being a victim of domestic or sexual violence; genetic information; physical or mental handicap or disability if otherwise able to perform the essential functions of the job with reasonable accommodation; pregnancy, childbirth, or related medical conditions; credit history, unless a satisfactory credit history is established bona fide occupational requirement of a particular position; or other legally protected categories. No one will be penalized solely for his or her status as a registered qualifying patient or a registered designated caregiver for purposes of the Compassionate Use of Medical Cannabis Pilot Program Act, 410 ILCL 130/.

Persons who believe they have not received equal employment opportunities should report their claims to the Nondiscrimination Coordinator and/or a Complaint Manager for the Uniform Grievance Procedure. These individuals are listed below. No employee or applicant will be discriminated or retaliated against because he or she: (1) requested, attempted to request, used, or attempted to use a reasonable accommodation as allowed by the Illinois Human Rights act, or (2) initiated a complaint, was a witness, supplied information, or otherwise participated in an investigation or proceeding involving an alleged violation of this policy or State or federal laws, rules or regulations, provided the employee or applicant did not make a knowingly false accusation nor provide knowingly false information.

### **Administrative Implementation**

The Superintendent shall appoint a Nondiscrimination Coordinator for personnel who shall be responsible for coordinating the District's nondiscrimination efforts. The Nondiscrimination Coordinator may be the Superintendent or a Complaint Manager for the Uniform Grievance Procedure. The Nondiscrimination Coordinator also serves as the District's Title IX Coordinator.

The Superintendent shall insert into this policy the names, office addresses, email addresses, and telephone numbers of the District's current Nondiscrimination Coordinator and Complaint Managers.

### **Nondiscrimination Coordinator:**

|                                                     |                                                     |
|-----------------------------------------------------|-----------------------------------------------------|
| Jason Fox<br><i>Name</i>                            | Rylan Rusk<br><i>Name</i>                           |
| 1100 East Laurel, Olney, IL 62450<br><i>Address</i> | 1100 East Laurel, Olney, IL 62450<br><i>Address</i> |
| (618) 395-2324<br><i>Telephone</i>                  | (618) 395-2324<br><i>Telephone</i>                  |

### **Complaint Managers:**

|                                                     |                                                    |                                                    |
|-----------------------------------------------------|----------------------------------------------------|----------------------------------------------------|
| Jennifer Fox<br><i>Name</i>                         | Jeff Thompson<br><i>Name</i>                       | Jennifer Tedford<br><i>Name</i>                    |
| 1001 N Holly Rd., Olney, IL 62450<br><i>Address</i> | 1200 East Laurel Olney, IL 62450<br><i>Address</i> | 1099 N. Van St., Olney, IL 62450<br><i>Address</i> |
| (618) 395-8540<br><i>Telephone</i>                  | (618) 393-2191<br><i>Telephone</i>                 | (618) 395-4372<br><i>Telephone</i>                 |



The Superintendent shall also use reasonable measures to inform staff members and applicants that the District is an equal opportunity employer, such as, by posting required notices and including this policy in the appropriate handbooks.

#### Minority Recruitment

The District will attempt to recruit and hire minority employees. The implementation of this policy may include advertising openings in minority publications, participating in minority job fairs, and recruiting at colleges and universities with significant minority enrollments. This policy, however, does not require or permit the District to give preferential treatment or special rights based on a protected status without evidence of past discrimination.

#### **EMPLOYMENT AT-WILL (5:270)**

Unless otherwise specifically provided, District employment is at-will, meaning that employment may be terminated by the District or employee at any time for any reason, other than a reason prohibited by law, or no reason at all. Nothing in School Board policy is intended or should be construed as altering the employment at-will relationship.

Exceptions to employment at-will may include employees who are employed annually, have an employment contract, or are otherwise granted a legitimate interest in continued employment. The Superintendent is authorized to make exceptions to employing non-licensed employees at-will but shall maintain a record of positions or employees who are not at-will.

#### Compensation

The Board will determine salary and wages for educational support personnel. Increments are dependent on evidence of continuing satisfactory performance. An employee covered by the overtime provisions in State or federal law shall not work overtime without the prior authorization from the employee's immediate supervisor. Educational support personnel are paid twice a month.

#### Assignment

The Superintendent is authorized to make assignments and transfers of educational support personnel.

#### **STAFF REDUCTION NOTICES**

If an educational support personnel employee is removed or dismissed or the hours he or she works are reduced as a result of a decision of the Board of Education (i) to decrease the number of educational support personnel employees employed by the Board or (ii) to discontinue some particular type of educational support service, written notice shall be mailed to the employee and also given to the employee either by certified mail, return receipt requested, or personal delivery with receipt, at least 30 days before the employee is removed or dismissed or the hours he or she works are reduced, together with a statement of honorable dismissal and the reason therefore if applicable. However, if a reduction in hours is due to an unforeseen reduction in the student population, then the written notice must only be mailed and given to the employee at least 5 days before the hours are reduced. The employee with the shorter length of continuing service with the District, within the respective category of position, shall be dismissed first. If the Board has any vacancies for the following school term or within one calendar year from the beginning of the following school term, the positions thereby becoming available within a specific category of position shall be tendered to the employees so removed or dismissed from that category or any other category of position, so far as they are qualified to hold such position.

#### **WORKPLACE HARASSMENT PROHIBITED (5:20)**

The School District expects the workplace environment to be productive, respectful, and free of unlawful discrimination, including harassment. District employees shall not engage in harassment or abusive conduct on the basis of an individual's actual or perceived race, color, religion, national origin, ancestry, sex, sexual orientation, age, citizenship status, disability, pregnancy, marital status, order of protection status, military status, or unfavorable discharge from military service, nor shall they engage in harassment or abusive conduct on the basis of an individual's other protected status identified in Board policy 5:10, Equal Employment Opportunity and

Minority Recruitment. Harassment of students, including, but not limited to, sexual harassment, is prohibited by Board policies 2:260, Uniform Grievance Procedure; 2:265, Title IX Sexual Harassment Grievance Procedure; 7:20, Harassment of Students Prohibited; 7:180, Prevention of and Response to Bullying, Intimidation, and Harassment; and 7:185, Teen Dating Violence Prohibited.

The School District will take remedial and corrective action to address unlawful workplace harassment, including sexual harassment.

#### Sexual Harassment Prohibited

The District shall provide a workplace environment free of verbal, physical, or other conduct or communications constituting harassment on the basis of sex as defined and otherwise prohibited by State and federal law. The District provides annual sexual harassment prevention training in accordance with State law.

District employees shall not make unwelcome sexual advances or request sexual favors or engage in any unwelcome conduct of a sexual nature when: (1) submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment; (2) submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual; or (3) such conduct has the purpose or effect of substantially interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment. Sexual harassment prohibited by this policy includes, but is not limited to, verbal, physical, or other conduct. The terms intimidating, hostile, or offensive include, but are not limited to, conduct that has the effect of humiliation, embarrassment, or discomfort. Sexual harassment will be evaluated in light of all the circumstances.

#### Making a Report or Complaint

Employees and nonemployees (persons who are not otherwise employees and are directly performing services for the District pursuant to a contract with the District, including contractors, and consultants) are encouraged to promptly report information regarding violations of this policy. Individuals may choose to report to a person of the individual's same gender. Every effort should be made to file such reports or complaints as soon as possible, while facts are known and potential witnesses are available.

Aggrieved individuals, if they feel comfortable doing so, should directly inform the person engaging in the harassing conduct or communication that such conduct or communication is offensive and must stop.

#### Whom to Contact with a Report or Complaint

An employee should report claims of harassment, including making a confidential report, to any of the following: his/her immediate supervisor, the Building Principal, an administrator, the Nondiscrimination Coordinator, and/or a Complaint Manager.

Employee may also report claims using Board policy 2:260, Uniform Grievance Procedure. If a claim is reported using Board policy 2:260, then the Complaint Manager shall process and review the claim according to that policy, in addition to any response required by this policy.

The Superintendent shall insert into this policy the names, office addresses, email addresses, and telephone numbers of the District's current Nondiscrimination Coordinator and Complaint Managers. The Nondiscrimination Coordinator also serves as the District's Title IX Coordinator.

**Nondiscrimination Coordinator:**

Jason Fox  
*Name*

Rylan Rusk  
*Name*

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Jennifer Fox  
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*Address*

(618) 395-8540  
*Telephone*

(618) 393-2191  
*Telephone*

(618) 395-4372  
*Telephone*

**Investigation Process**

Any District employee who receives a report or complaint of harassment must promptly forward the report or complaint to the Nondiscrimination Coordinator or a Complaint Manager. Any employee who fails to promptly forward a report or complaint may be disciplined, up to and including discharge.

Reports and complaints of harassment will be confidential to the greatest extent practicable, subject to the District's duty to investigate and maintain a workplace environment that is productive, respectful, and free of unlawful discrimination, including harassment.

For any report or complaint alleging sexual harassment that, if true, would implicate Title IX of the Education Amendments of 1972 (20 U.S.C. §1681 et seq.), the Nondiscrimination Coordinator or designee shall consider whether action under policy 2:265, Title IX Sexual Harassment Grievance Procedure, should be initiated.

For any other alleged workplace harassment that does not require action under policy 2:265, Title IX Sexual Harassment Grievance Procedure, the Nondiscrimination Coordinator or a Complaint Manager or designee shall consider whether an investigation under policy 2:260, Uniform Grievance Procedure, and/or 5:120, Employee Ethics; Conduct, and Conflict of Interest, should be initiated, regardless of whether a written report or complaint is filed.

**Reports That Involve Alleged Incidents of Sexual Abuse of a Child by School Personnel**

An alleged incident of sexual abuse is an incident of sexual abuse of a child, as defined in 720 ILCS 5/11-9.1A(b), that is alleged to have been perpetrated by school personnel, including a school vendor or volunteer, that occurred: on school grounds during a school activity; or outside of school grounds or not during a school activity.

Any complaint alleging an incident of sexual abuse shall be processed and reviewed according to policy 5:90, Abused and Neglected Child Reporting. In addition to reporting the suspected abuse, the complaint shall also be processed under policy 2:265, Title IX Sexual Harassment Grievance Procedure, or policy 2:260, Uniform Grievance Procedure.

### Enforcement

A violation of this policy by an employee may result in discipline, up to and including discharge. A violation of this policy by a third party will be addressed in accordance with the authority of the Board in the context of the relationship of the third party to the District, e.g., vendor, parent, invitee, etc. Any person employee making a knowingly false accusation regarding harassment will likewise be subject to disciplinary action, which for an employee that may be up to and including discharge.

### Retaliation Prohibited

An employee's employment, compensation, or work assignment shall not be adversely affected by complaining or providing information about harassment. Retaliation against employees for bringing complaints or providing information about harassment is prohibited (see Board policy 2:260, Uniform Grievance Procedure), and depending upon the law governing the complaint, whistleblower protection may be available under the State Officials and Employees Ethics Act (5 ILCS 430/), the Whistleblower Act (740 ILCS 174/), and the Ill. Human Rights Act (775 ILCS 5/).

An employee should report allegations of retaliation to his/her immediate supervisor, the Building Principal, an administrator, the Nondiscrimination Coordinator, and/or a Complaint Manager.

Employees who retaliate against others for reporting or complaining of violations of this policy or for participating in the reporting or complaint process will be subject to disciplinary action, up to and including discharge.

### Recourse to State and Federal Fair Employment Practice Agencies

The District encourages all employees who have information regarding violations of this policy to report the information pursuant to this policy. The following government agencies are available to assist employees: the Ill. Dept. of Human Rights and the U.S. Equal Employment Opportunity Commission.

The Superintendent shall also use reasonable measures to inform staff members, applicants, and nonemployees of this policy, which shall include posting on the District website and/or making this policy available in the District's administrative office, and including this policy in the appropriate handbooks.

## **4:165 AWARENESS AND PREVENTION OF CHILD SEXUAL ABUSE AND GROOMING BEHAVIORS**

Child sexual abuse and grooming behaviors harm students, their parents/guardians, the District's environment, its school communities, and the community at large, while diminishing a student's ability to learn. The Board has a responsibility and obligation to increase awareness and knowledge of: (1) issues regarding child sexual abuse, (2) likely warning signs that a child may be a victim of sexual abuse, (3) grooming behaviors related to child sexual abuse and grooming, (4) how to report child sexual abuse, (5) appropriate relationships between District employees and students based upon State law, and (6) how to prevent child sexual abuse.

To address the Board's obligation to increase awareness and knowledge of these issues, prevent sexual abuse of children, and define prohibited grooming behaviors, the Superintendent or designee shall implement an Awareness and Prevention of Sexual Abuse and Grooming Behaviors Program. The Program will:

1. Educate students with:
  - a. An age-appropriate and evidence-informed health and safety education curriculum that includes methods for how to report child sexual abuse and grooming behaviors to authorities, through policy 6:60, Curriculum Content;
  - b. Information in policy 7:250, Student Support Services, about:
    - (i) District counseling options, assistance, and intervention for students who are victims of or affected by sexual abuse, and
    - (ii) community-based Children's Advocacy Centers and sexual assault crisis centers and how to access those serving the District.
2. Train District employees about child sexual abuse and grooming behaviors by January 31 of each school year with materials that include:
  - a. A definition of prohibited grooming behaviors and boundary violations pursuant to policy 5:120, Employee Ethics; Code of Professional Conduct; and Conflict of Interest;
  - b. Evidence-informed content on preventing, recognizing, reporting, and responding to child sexual abuse, grooming behaviors, and boundary violations pursuant to policies 2:260, Uniform

Grievance Procedure; 2:265, Title IX Sexual Harassment Grievance Procedure; 5:90, Abused and Neglected Child Reporting; 5:100, Staff Development Program; and 5:120, Employee Ethics; Code of Professional Conduct; and Conflict of Interest;; and c. How to report child sexual abuse, grooming behaviors, and/or boundary violations pursuant to policies 2:260, Uniform Grievance Procedure; 2:265, Title IX Sexual Harassment Grievance Procedure; and 5:90, Abused and Neglected Child Reporting.

3. Provide information to parents/guardians in student handbooks about the warning signs of child sexual abuse, grooming behaviors, and boundary violations with evidence-informed educational information that also includes:
  - a. Assistance, referral, or resource information, including how to recognize grooming behaviors, appropriate relationships between District employees and students based upon policy 5:120, Employee Ethics; Code of Professional Conduct; and Conflict of Interest, and how to prevent child sexual abuse from happening;
  - b. Methods for how to report child sexual abuse, grooming behaviors, and/or boundary violations to authorities; and
  - c. Available counseling and resources for children who are affected by sexual abuse, including both emotional and educational support for students affected by sexual abuse, so that the student can continue to succeed in school pursuant to policy 7:250, Student Support Services.
4. Provide parents/guardians of students in any of grades K through 8 with not less than five days' written notice before commencing any class or course providing instruction in recognizing and avoiding sexual abuse, as well as the opportunity to object in writing.

#### **ABUSED AND NEGLECTED CHILD REPORTING (5:90)**

Any District employee who suspects or receives knowledge that a student may be an abused or neglected child or, for a student aged 18 through 22 an abused or neglected individual with a disability, shall: (1) immediately report or cause a report to be made to the Ill. Dept. of Children and Family Services (DCFS) on its Child Abuse Hotline 1-800-25-ABUSE (1-800-252-2873)(within Illinois); 1-217-524-2606 (outside of Illinois); or 1-800-358-5117 (TTY), and (2) follow directions given by DCFS concerning filing a written report within 48 hours with the nearest DCFS field office. Any District employee who believes a student is in immediate danger of harm, shall first call 911. The employee shall also promptly notify the Superintendent or Building Principal that a report has been made. The Superintendent or Building Principal shall immediately coordinate any necessary notifications to the student's parent(s)/guardian(s) with DCFS, the applicable school resource officer (SRO), and/or local law enforcement. Negligent failure to report occurs when a District employee personally observes an instance of suspected child abuse or neglect and reasonably believes, in his or her professional or official capacity, that the instance constitutes an act of child abuse or neglect under the Abused and Neglected Child Reporting Act (ANCRA) and he or she, without willful intent, fails to immediately report or cause a report to be made of the suspected abuse or neglect to DCFS.

Any District employee who discovers child pornography on electronic and information technology equipment shall immediately report it to local law enforcement, the National Center for Missing and Exploited Children's CyberTipline 1-800-THE-LOST (1-800-843-5678) or online at [www.report.cybertip.org](http://www.report.cybertip.org) or [www.missingkids.org](http://www.missingkids.org). The Superintendent or Building Principal shall also be promptly notified of the discovery and that a report has been made.

Any District employee who observes any act of hazing that does bodily harm to a student must report that act to the Building Principal, Superintendent, or designee who will investigate and take appropriate action. If the hazing results in death or great bodily harm, the employee must first make the report to law enforcement and then to the Superintendent or Building Principal. Hazing is defined as any intentional, knowing, or reckless act directed to or required of a student for the purpose of being initiated into, affiliating with, holding office in, or maintaining membership in any group, organization, club, or athletic team whose members are or include other students.

Abused and Neglected Child Reporting Act (ANCRA), School Code, and Erin's Law Training  
The Superintendent or designee shall provide staff development opportunities for District employees

in the detection, reporting, and prevention of child abuse and neglect.

All District employees shall:

1. Before beginning employment, sign the Acknowledgement of Mandated Reporter Status form provided by DCFS. The Superintendent or designee shall ensure that the signed forms are retained.
2. Complete mandated reporter training as required by law within three months of initial employment and at least every three years after that date.
3. Complete an annual evidence-informed training related to child sexual abuse, grooming behaviors, and boundary violations as required by law and policy 5:100, Staff Development Program.

#### **Alleged Incidents of Sexual Abuse; Investigations**

An alleged incident of sexual abuse is an incident of sexual abuse of a child, as defined in 720 ILCS 5/11-9.1A, that is alleged to have been perpetrated by school personnel, including a school vendor or volunteer, that occurred: on school grounds during a school activity; or outside of school grounds or not during a school activity.

If a District employee reports an alleged incident of sexual abuse to DCFS and DCFS accepts the report for investigation, DCFS will refer the matter to the local Children's Advocacy Center (CAC). The Superintendent or designee will implement procedures to coordinate with the CAC.

DCFS and/or the appropriate law enforcement agency will inform the District when its investigation is complete or has been suspended, as well as the outcome of its investigation. The existence of a DCFS and/or law enforcement investigation will not preclude the District from conducting its own parallel investigation into the alleged incident of sexual abuse in accordance with policy 7:20, Harassment of Students Prohibited.

#### **Special Superintendent Responsibilities**

The Superintendent shall execute the requirements in Board policy 5:150, Personnel Records, whenever another school district requests a reference concerning an applicant who is or was a District employee and was the subject of a report made by a District employee to DCFS.

The Superintendent shall notify the State Superintendent and the Regional Superintendent in writing when he or she has reasonable cause to believe that a license holder was dismissed or resigned from the District as a result of an act that made a child an abused or neglected child. The Superintendent must make the report within 30 days of the dismissal or resignation and mail a copy of the notification to the license holder.

#### **Special School Board Member Responsibilities**

Each individual Board member must, if an allegation is raised to the member during an open or closed Board meeting that a student is an abused child as defined in ANCRA, direct or cause the Board to direct the Superintendent or other equivalent school administrator to comply with ANCRA's requirements concerning the reporting of child abuse.

If the Board determines that any District employee, other than an employee licensed under 105 ILCS 5/21B, has willfully or negligently failed to report an instance of suspected child abuse or neglect as required by ANCRA, the Board may dismiss that employee immediately.

When the Board learns that a licensed teacher was convicted of any felony, it must promptly report it to the State agencies listed in policy 2:20, Powers and Duties of the School Board; Indemnification.

### **EDUCATION OF HOMELESS CHILDREN (6:140)**

Each child of a homeless individual and each homeless youth has equal access to the same free, appropriate public education, as provided to other children and youths, including a public pre-school education. A "homeless child" is defined as provided in the McKinney Homeless Assistance Act and State Law. The Superintendent shall act as or appoint a Liaison for Homeless Children to coordinate this policy's implementation.

A homeless child may attend the District school that the child attended when permanently housed or in which the child was last enrolled. A homeless child living in any District school's attendance area may attend that school.

The Superintendent or designee shall review and revise rules or procedures that may act as barriers to the enrollment of homeless children and youths. In reviewing and revising such procedures, consideration shall be given to issues concerning transportation, immunization, residency, birth certificates, school records and other documentation, and guardianship.

Transportation shall be provided in accordance with the McKinney Homeless Assistance Act and State law. The Superintendent or designee shall give special attention to ensuring the enrollment and attendance of homeless children and youths who are not currently attending school.

If a child is denied enrollment or transportation under this policy, the Liaison for Homeless Children shall immediately refer the child or his or her parent/guardian to the ombudsperson appointed by the Regional Superintendent and provide the child or his or her parent/guardian with a written explanation for the denial.

Whenever a child and his or her parent/guardian who initially share the housing of another person due to loss of housing, economic hardship, or a similar hardship continue to share the housing, the Liaison for Homeless Children shall, after the passage of 18 months and annually thereafter, conduct a review as to whether such hardship continues to exist in accordance with State law.

### **RELEASE OF STUDENTS TO AUTHORIZED INDIVIDUALS (7:90)**

For safety and security reasons, a prior written or oral consent of a student's custodial parent/guardian is required before a student is released during school hours: (1) at any time before the regular dismissal time or at any time before school is otherwise officially closed, and/or (2) to any person other than a custodial parent/guardian.

### **Early Dismissal Announcement**

The Superintendent or designee shall make reasonable efforts to issue an announcement whenever it is necessary to close school early due to inclement weather or other reason.

### **STUDENT RECORDS (7:340)**

School student records are confidential. Information from them shall not be released other than as provided by law. A school student record is any writing or other recorded information concerning a student and by which a student may be identified individually that is maintained by a school or at its direction by a school employee, regardless of how or where the information is stored, except as provided in State or federal law as summarized below:

1. Records kept in a staff member's sole possession.
2. Records maintained by law enforcement officers working in the school.
3. Video and other electronic recordings (including without limitation, electronic recordings made on school buses) that are created in part for law enforcement, security, or safety reasons or purposes. The content of these recordings may become part of a school student record to the extent school officials create, use, and maintain this content, or it becomes available to them by law enforcement officials, for disciplinary or special education purposes regarding a particular student.
4. Any information, either written or oral, received from law enforcement officials concerning a student less than the age of 18 years who has been arrested or taken into custody.

State and federal law grants students, parents/guardians, and when applicable, the Ill. Dept. of Children and Family Services' Office of Education and Transition Services, certain rights, including the right to inspect, copy, and/or challenge school student records. The information contained in school student records shall be kept current, accurate, clear, and relevant. All information maintained concerning a student receiving special

education services shall be directly related to the provision of services to that child. The District may release directory information as permitted by law, but a parent/guardian shall have the right to opt-out of the release of directory information regarding his or her child. The District will comply with State or federal law with regard to release of a student's school records, including, where applicable, without notice to, or the consent of, the student's parent/guardian or eligible student. Upon request, the District discloses school student records without parent consent to the official records custodian of another school in which a student has enrolled or intends to enroll, as well as to any other person as specifically required or permitted by State or federal law..

The Superintendent shall fully implement this policy and designate an official records custodian for each school who shall maintain and protect the confidentiality of school student records, inform staff members of this policy, and inform students and their parents/guardians of their rights regarding school student records.

#### Student Biometric Information Collection

The Superintendent or designee may recommend a student biometric information collection system solely for the purposes of identification and fraud prevention. Such recommendation shall be consistent with budget requirements and in compliance with State law. Biometric information means any information that is collected through an identification process for individuals based on their unique behavioral or physiological characteristics, including fingerprint, hand geometry, voice, or facial recognition or iris or retinal scans.

Before collecting student biometric information, the District shall obtain written permission from the person having legal custody/parental responsibility or the student (if over the age of 18). Upon a student's 18th birthday, the District shall obtain written permission from the student to collect student biometric information. Failure to provide written consent to collect biometric information shall not be the basis for refusal of any services otherwise available to a student.

All collected biometric information shall be stored and transmitted in a manner that protects it from disclosure. Sale, lease, or other disclosure of biometric information to another person or entity is strictly prohibited.

The District will discontinue use of a student's biometric information and destroy all collected biometric information within 30 days after: (1) the student graduates or withdraws from the School District, or (2) the District receives a written request to discontinue use of biometric information from the person having legal custody/parental responsibility of the student or the student (if over the age of 18). Requests to discontinue using a student's biometric information shall be forwarded to the Superintendent or designee.

The Superintendent or designee shall develop procedures to implement this policy consistent with State and federal law.

#### **FINGERPRINTING AND CRIMINAL BACKGROUND CHECKING POLICY (5.30)**

The Superintendent or designee shall ensure that a fingerprint-based criminal history records check and a check of the Statewide Sex Offender Database and Violent Offender Against Youth Database is performed on each applicant as required by State law. When the applicant is a successful superintendent candidate who has been offered employment by the Board, the Board President shall ensure that these checks are completed. The Superintendent or designee, or if the applicant is a successful superintendent candidate, then the Board President shall notify an applicant if the applicant is identified in either database. The School Code requires the Board President to keep a conviction record confidential and share it only with the Superintendent, Regional Superintendent, State Superintendent, State Educator Preparation and Licensure Board, any other person necessary to the hiring decision, the Ill. State Police and/or Statewide Sex Offender Database for purposes of clarifying the information, and/or the Teachers' Retirement System of the State of Illinois when required by law. The Board reserves its right to authorize additional background inquiries beyond a fingerprint-based criminal history records check when it deems it appropriate to do so, in accordance with applicable laws.

Each newly hired employee must complete a U.S. Citizenship and Immigration Services Form as required by federal law.



The District retains the right to discharge any employee whose criminal background investigation reveals a conviction for committing or attempting to commit any of the offenses outlined in 105 ILCS 5/21B-80 or who falsifies, or omits facts from, his or her employment application or other employment documents. If an indicated finding of abuse or neglect of a child has been issued by the Ill. Department of Children and Family Services or by a child welfare agency of another jurisdiction for any applicant for student teaching, applicant for employment, or any District employee, then the Board must consider that person's status as a condition of employment.

#### Sexual Misconduct Related Employment History Review (EHR)

Prior to hiring an applicant for a position involving direct contact with children or students, the Superintendent shall ensure that an EHR is performed as required by State law. When the applicant is a superintendent candidate, the Board President shall ensure that the EHR is initiated before a successful superintendent candidate is offered employment by the Board.

### **ACCIDENT REPORTING AND INVESTIGATION**

Employees must report any accident or injury to their building administrator immediately following the accident or injury. Employees will assist in completing an accident/injury report and update administration regarding recovery from accidents or injuries following doctor visits. The Administration will investigate all accidents and injuries and report to the Superintendent efforts to prevent any further accidents and injuries.

### **DRUG- AND ALCOHOL-FREE WORKPLACE; E-CIGARETTE, TOBACCO, AND CANNABIS PROHIBITION (5:50)**

All District workplaces are drug- and alcohol-free workplaces.

All employees are prohibited from engaging in any of the following activities while on District premises or while performing work or being *on call* for the District:

1. Unlawful manufacture, dispensing, distribution, possession, or use of an illegal or controlled substance.
2. Distribution, consumption, use, possession, or being impaired by or under the influence of an alcoholic beverage; being present on District premises or while performing work for the District when alcohol consumption is detectable, regardless of when and/or where the use occurred.
3. Distribution, consumption, possession, use, or being impaired by or under the influence of cannabis; being present on District premises or while performing work for the District when impaired by or under the influence of cannabis, regardless of when and/or where the use occurred, unless distribution, possession, and/or use is by a school nurse or school administrator pursuant to *Ashley's Law*, 105 ILCS 5/22-33. The District considers employees impaired by or under the influence of cannabis when there is a good faith belief that an employee manifests the specific articulable symptoms listed in the Cannabis Regulation and Tax Act (CRTA).

For purposes of this policy, a controlled substance means a substance that is:

1. Not legally obtainable,
2. Being used in a manner different than prescribed,
3. Legally obtainable, but has not been legally obtained, or
4. Referenced in federal or State controlled substance acts.

For purposes of this policy, *District premises* means workplace as defined in the CRTA in addition to District and school buildings, grounds, and parking areas; vehicles used for school purposes; and any location used for a School Board meeting, school athletic event, or other school-sponsored or school-sanctioned events or activities. *School grounds* means the real property comprising any school, any conveyance used to transport students to school or a school-related activity, and any public way within 1,000 feet of any school ground, designated school bus stops where students are waiting for the school bus, and school-sponsored or school-sanctioned events or activities. "Vehicles used for school purposes" means school buses or other school vehicles.

As a condition of employment, each employee shall:

1. Abide by the terms of the Board policy respecting a drug- and alcohol-free workplace; and

2. Notify his or her supervisor of his or her conviction under any criminal drug statute for a violation occurring on the District premises or while performing work for the District, no later than five calendar days after such a conviction.

Unless otherwise prohibited by this policy, prescription and over-the-counter medications are not prohibited when taken in standard dosages and/or according to prescriptions from the employee's licensed health care provider, provided that an employee's work performance is not impaired.

To make employees aware of the dangers of drug and alcohol abuse, the Superintendent or designee shall perform each of the following:

1. Provide each employee with a copy of this policy.
2. Post notice of this policy in a place where other information for employees is posted.
3. Make available materials from local, State, and national anti-drug and alcohol-abuse organizations.
4. Enlist the aid of community and State agencies with drug and alcohol informational and rehabilitation programs to provide information to District employees.
5. Establish a drug-free awareness program to inform employees about:
  - a. The dangers of drug abuse in the workplace,
  - b. Available drug and alcohol counseling, rehabilitation, re-entry, and any employee assistance programs, and
  - c. The penalties that the District may impose upon employees for violations of this policy.
6. Remind employees that policy 6:60, *Curriculum Content*, requires the District to educate students, depending upon their grade, about drug and substance abuse prevention and relationships between drugs, alcohol, and violence.

#### E-Cigarette, Tobacco, and Cannabis Prohibition

All employees are covered by the conduct prohibitions contained in policy 8:30, *Visitors to and Conduct on School Property*. The prohibition on the use of e-cigarettes, tobacco, and cannabis products applies both (1) when an employee is on school property, and (2) while an employee is performing work for the District at a school event regardless of the event's location.

*Tobacco* shall have the meaning provided in 105 ILCS 5/10-20.5b.

*Cannabis* shall have the meaning provided in the CRTA, 410 ILCS 705/1-10.

*E-Cigarette* is short for electronic cigarette and includes, but is not limited to, any electronic nicotine delivery system (ENDS), electronic cigar, electronic cigarillo, electronic pipe, electronic hookah, vape pen, or similar product or device, and any components or parts that can be used to build the product or device.

#### District Action Upon Violation of Policy

An employee who violates this policy may be subject to disciplinary action, including termination. In addition or alternatively, the Board may require an employee to successfully complete an appropriate drug- or alcohol-abuse rehabilitation program.

The Board shall take disciplinary action with respect to an employee convicted of a drug offense in the workplace within 30 days after receiving notice of the conviction.

Should District employees be engaged in the performance of work under a federal contract or grant, or under a State contract or grant of \$5,000 or more, the Superintendent shall notify the appropriate State or federal agency from which the District receives contract or grant monies of the employee's conviction within 10 days after receiving notice of the conviction.

#### Disclaimer

The Board reserves the right to interpret, revise or discontinue any provision of this policy pursuant to the **Suspension of Policies** subhead in policy 2:240, *Board Policy Development*.

**DRUG AND ALCOHOL TESTING FOR SCHOOL BUS AND COMMERCIAL VEHICLE DRIVERS****(5:285)**

The District shall adhere to State and federal law and regulations requiring a drug and alcohol testing program for school bus and commercial vehicle drivers. The Superintendent or designee manages a program to implement federal and State law defining the circumstances and procedures for the testing.

**PUBLIC INFORMATION PROCESS**

The Principal and Superintendent are the public relations officers of the school. Contacts with the media should be routed through the Principal first and then the Superintendent. If a member of the media contacts an employee about a school related issue, the Principal and/or Superintendent should be informed.

**RESPONSIBILITIES CONCERNING INTERNAL INFORMATION (5:130)**

District employees are responsible for maintaining (1) the integrity and security of all internal information, and (2) the privacy of confidential records, including but not limited to: student school records, personnel records, and the minutes of, and material disclosed in, a closed School Board meeting. Internal information is any information, oral or recorded in electronic or paper format, maintained by the District or used by the District or its employees. The Superintendent or designee shall manage procedures for safeguarding the integrity, security and, as appropriate, confidentiality of internal information.

**SOLICITATION AND DISTRIBUTION**

Employees may not solicit or distribute literature concerning outside events or activities during the employee's working time or the working time of any employee. (Working time does not include lunch periods, work breaks, or any periods in which employees are not on duty). In addition, the posting of written solicitations or literature on District bulletin boards is restricted. These bulletin boards display important information and employees should consult them frequently for: Employee Announcements, Internal Memoranda, Job Openings, Organization Announcements, Payday Notice, Worker's Compensation Insurance information, etc. If employees have a message of interest to the workplace, they may submit it to administration for approval.

**EMPLOYEE ETHICS; CODE OF PROFESSIONAL CONDUCT; AND CONFLICT OF INTEREST (5:120)**

All District employees are expected to maintain high standards in their job performance, demonstrate integrity and honesty, be considerate and cooperative, and maintain professional and appropriate relationships with students, parents/guardians, staff members, and others.

The Superintendent or designee shall provide this policy to all District employees and students and/or parents/guardians in their respective handbooks, and ensure its posting on the District's website, if any.

**Professional and Appropriate Conduct**

Professional and appropriate employee conduct are important Board goals that impact the quality of a safe learning environment and the school community, increasing students' ability to learn and the District's ability to educate. To protect students from sexual misconduct by employees, and employees from the appearance of impropriety, State law also recognizes the importance for District employees to constantly maintain professional and appropriate relationships with students by following established expectations and guidelines for employee-student boundaries. Many breaches of employee-student boundaries do not rise to the level of criminal behavior but do pose a potential risk to student safety and impact the quality of a safe learning environment. Repeated violations of employee-student boundaries may indicate the grooming of a student for sexual abuse. As bystanders, employees may know of concerning behaviors that no one else is aware of, so their training on: (1) preventing, recognizing, reporting, and responding to child sexual abuse and grooming behavior; (2) this policy; and (3) federal and state reporting requirements is essential to maintaining the Board's goal of professional and appropriate conduct.

The Superintendent or designee shall identify employee conduct standards that define appropriate employee-student boundaries, provide training about them, and monitor the District's employees for

violations of employee-student boundaries. The employee conduct standards will require that, at a minimum:

1. Employees who are governed by the Code of Ethics for Illinois Educators, adopted by the Ill. State Board of Education (ISBE), will comply with its incorporation by reference into this policy.
2. Employees are trained on educator ethics, child abuse, grooming behaviors, and employee student boundary violations as required by law and policies 2:265, Title IX Sexual Harassment Grievance Procedure; 4:165, Awareness and Prevention of Child Sexual Abuse and Grooming Behaviors; 5:90, Abused and Neglected Child Reporting; and 5:100, Staff Development Program.
3. Employees maintain professional relationships with students, including maintaining employee student boundaries based upon students' ages, grade levels, and developmental levels and following District-established guidelines for specific situations, including but not limited to:
  - a. Transporting a student;
  - b. Taking or possessing a photo or video of a student; and
  - c. Meeting with a student or contacting a student outside the employee's professional role.
4. Employees report prohibited behaviors and/or boundary violations pursuant to Board policies 2:260, Uniform Grievance Procedure; 2:265, Title IX Sexual Harassment Grievance Procedure; and 5:90, Abused and Neglected Child Reporting.
5. Discipline up to and including dismissal will occur for any employee who violates an employee conduct standard or engages in any of the following:
  - a. Violates expectations and guidelines for employee-student boundaries.
  - b. Sexually harasses a student.
  - c. Willfully or negligently fails to follow reporting requirements of the Abused and Neglected Child Reporting Act (325 ILCS 5/), Title IX of the Education Amendments of 1972 (20 U.S.C. §1681 et seq.), or the Elementary and Secondary Education Act (20 U.S.C. § 7926).
  - d. Engages in grooming as defined in 720 ILCS 5/11-25
  - e. Engages in grooming behaviors. Prohibited grooming behaviors include, at a minimum, sexual misconduct. Sexual misconduct is any act, including but not limited to, any verbal, nonverbal, written, or electronic communication or physical activity, by an employee with direct contact with a student that is directed toward or with a student to establish a romantic or sexual relationship with the student. Examples include, but are not limited to:
    - i. A sexual or romantic invitation.
    - ii. Dating or soliciting a date.
    - iii. Engaging in sexualized or romantic dialog.
    - iv. Making sexually suggestive comments that are directed toward or with a student.
    - v. Self-disclosure or physical exposure of a sexual, romantic, or erotic nature.
    - vi. A sexual, indecent, romantic, or erotic contact with the student.

#### Statement of Economic Interests

The following employees must file a "Statement of Economic Interests" as required by the Illinois Governmental Ethics Act:

1. Superintendent;
2. Building Principal;
3. Head of any department;
4. Any employee who, as the District's agent, is responsible for negotiating one or more contracts, including collective bargaining agreement(s), in the amount of \$1,000 or greater;
5. Hearing officer;
6. Any employee having supervisory authority for 20 or more employees; and
7. Any employee in a position that requires an administrative or a chief school business official endorsement.

Ethics and Gift Ban

School Board policy 2:105, *Ethics and Gift Ban*, applies to all District employees. Students shall not be used in any manner for promoting a political candidate or issue.

Prohibited Interests, Limitation of Authority

In accordance with Section 22-5 of the School Code, "no school officer or teacher shall be interested in the sale, proceeds, or profits of any book, apparatus, or furniture used or to be used in any school with which such officer or teacher may be connected," except when the employee is the author or developer of instructional materials listed with the Illinois State Board of Education and adopted for use by the Board. An employee having an interest in instructional materials must file an annual statement with the Board Secretary.

For the purpose of acquiring profit or personal gain, no employee shall act as an agent of the District nor shall an employee act as an agent of any business in any transaction with the District. This includes participation in the selection, award or administration of a contract supported by a federal award or State award governed by the Grant Accountability and Transparency Act (GATA) (30 ILCS 708/) when the employee has a real or apparent conflict of interest. A conflict of interest arises when an employee or any of the following individuals has a financial or other interest in the entity selected for the contract:

1. Any person that has a close personal relationship with an employee that may compromise or impair the employee's fairness and impartiality, including a member of the employee's immediate family or household;
2. An employee's business partner; or
3. An entity that employs or is about to employ the employee or one of the individuals listed in one or two above.

Employees shall neither solicit nor accept gratuities, favors, or anything of monetary value from contractors, potential contractors, or parties to agreements or contracts. Situations in which the interest is not substantial or the gift is an unsolicited item of nominal value must comply with State law and Board policy 2:105, *Ethics and Gift Ban*.

**Guidance Counselor Gift Ban** Guidance counselors are prohibited from intentionally soliciting or accepting any gift from a prohibited source or any gift that would be in violation of any federal or State statute or rule. For guidance counselors, a prohibited source is any person who is (1) employed by an institution of higher education, or (2) an agent or spouse of or an immediate family member living with a person employed by an institution of higher education. This prohibition does not apply to:

1. Opportunities, benefits, and services available on the same conditions as for the general public.
2. Anything for which the guidance counselor pays market value.
3. A gift from a relative.
4. Anything provided by an individual on the basis of a personal friendship, unless the guidance counselor believes that it was provided due to the official position or employment of the guidance counselor and not due to the personal friendship. In determining whether a gift is provided on the basis of personal friendship, the guidance counselor must consider the circumstances in which the gift was offered, including any of the following:
  - a. The history of the relationship between the individual giving the gift and the guidance counselor, including any previous exchange of gifts between those individuals.
  - b. Whether, to the actual knowledge of the guidance counselor, the individual who gave the gift personally paid for the gift or sought a tax deduction or business reimbursement for the gift.
  - c. Whether, to the actual knowledge of the guidance counselor, the individual who gave the gift also, at the same time, gave the same or a similar gift to other school district employees.
5. Bequests, inheritances, or other transfers at death.
6. Any item(s) during any calendar year having a cumulative total value of less than \$100.
7. Promotional materials, including, but not limited to, pens, pencils, banners, posters, and pennants.

A guidance counselor does not violate this prohibition if he or she promptly returns the gift to the prohibited source or donates the gift or an amount equal to its value to a tax exempt charity.

### Outside Employment

Employees shall not engage in any other employment or in any private business during regular working hours or at such other times as are necessary to fulfill appropriate assigned duties.

### TOBACCO

In keeping with Richland County CUSD #1's intent to provide a safe and healthful work environment and in compliance with the Illinois School Code and Smoke-Free Illinois Act, smoking is ***prohibited*** in all school buildings, vehicles used for school purposes, and school property. Further, the use of tobacco is prohibited on school property by any employee, student, or other person when such property is being used for any school purposes. "School purposes" include but are not limited to all events or activities or other use of school property that the Board or school officials authorize or permit on school property, including without limitation all interscholastic or extracurricular athletic, academic, or other events sponsored by the Board or in which pupils of the District participate. "Tobacco" shall mean cigarette, e-cigarette, vaping, cigar, or any other electronic nicotine delivery system or tobacco in any other form, including smokeless tobacco which is any loose, cut, shredded, ground, powdered, compressed or leaf tobacco that is intended to be placed in the mouth without being smoked.

*This policy applies equally to all employees and visitors.*

### ACCESS TO ELECTRONIC NETWORKS (6:235)

Electronic networks, including the Internet are a part of the District's instructional program in order to promote educational excellence by facilitating resource sharing, innovation, and communication. The Superintendent or designee shall develop an implementation plan for this policy and appoint a system administrator.

The School District is not responsible for any information that may be lost, damaged, or unavailable when using the network, or for any information that is retrieved or transmitted via the Internet.

### Curriculum and Appropriate Online Behavior

The use of the District's electronic networks shall: (1) be consistent with the curriculum adopted by the District as well as the varied instructional needs, learning styles, abilities, and developmental levels of the students, and (2) comply with the selection criteria for instructional materials and library resource center materials. As required by the federal law and board policy 6:60, *Curriculum content*, students will be educated about appropriate online behavior, including but not limited to: (1) interacting with other individuals on social networking websites and in chat rooms, and (2) cyber-bullying awareness and response. Staff members may, consistent with the Superintendent's implementation plan, use the Internet throughout the curriculum.

The District's electronic network is part of the curriculum and is not a public forum for general use.

### Acceptable Use

All use of the District's electronic networks must be (1) in support of education and/or research, and be in furtherance of the goals and stated herein, or (2) for a legitimate school business purpose. Use is a privilege, not a right. Students and staff members have not expectation of privacy in any material that is stored, transmitted, or received via the District's electronic networks or District computers. General rules for behavior and communications apply when using electronic networks. The District's Authorization for Electronic Network Access contains the appropriate uses, ethics, and protocol. Electronic communications and downloaded material, including files deleted from a user's account but not erased, may be monitored or read by school officials.

### Internet Safety

Technology protection measures shall be used on each District computer with Internet access. They shall include a filtering device that protects against Internet access by both adults and minors to visual depictions that are: (1) obscene, (2) pornographic, or (3) harmful or inappropriate for students, as defined by federal and as determined by the Superintendent or designee. The Superintendent or designee shall enforce the use of such filtering devices. An administrator, supervisor, or other authorized person may disable the filtering device for

bona fide research or other lawful purpose, provided the person receives prior permission from the Superintendent or system administrator. The Superintendent or designee shall include measures in this policy's implementation plan to address the following:

4. Ensure staff supervision of student access to online electronic networks,
5. Restrict student access to inappropriate matter as well as restricting access to harmful materials,
6. Ensure student and staff privacy, safety, and security when using electronic communications,
7. Restrict unauthorized access, including "hacking" and other unlawful activities, and
8. Restrict unauthorized disclosure, use, and dissemination of personal identification information, such as, names and addresses.

#### Authorization for Electronic Network Access

Each staff member must sign the District's Authorization for Electronic Network Access as a condition for using the District's electronic network. Each student and his or her parent(s)/guardian(s) must sign the Authorization before being granted unsupervised use.

All users of the District's computers to access the Internet shall maintain the confidentiality of student records. Reasonable measures to protect against unreasonable access shall be taken before confidential student information is loaded onto the network.

The failure of any student or staff member to follow the terms of the Authorization for Electronic Network Access, or this policy, will result in the loss of privileges, disciplinary action, and/or appropriate legal action.

### **PERSONAL TECHNOLOGY AND SOCIAL NETWORKING; USAGE AND CONDUCT (5:125)**

#### Definitions

**Includes** – Means "includes without limitation" or "includes, but is not limited to."

**Social media** – Media for social interaction, using highly accessible communication techniques through the use of web-based and mobile technologies to turn communication into interactive dialogue. This includes, but is not limited to, services such as Facebook, LinkedIn, Twitter, Instagram, Snapchat, and YouTube.

**Personal technology** – Any device that is not owned or leased by the District or otherwise authorized for District use and: (1) transmits sounds, images, text, messages, videos, or electronic information, (2) electronically records, plays, or stores information, or (3) accesses the Internet, or private communication or information networks. This includes ***laptops computers (e.g., laptops, ultrabooks, and chromebooks), tablets (e.g. iPads® Kindle®, Microsoft Surface® and other Android® platform or Windows® devices), smartphones (e.g. iPhone®, BlackBerry®, Android®, platform phones, and Windows Phone®), and other devices, (e.g.) iPods®.***

#### Usage and Conduct

All District employees who use personal technology and social media shall:

1. Adhere to the high standards for Professional and Appropriate Conduct required by policy 5:120, Employee Ethics; Conduct; and Conflict of Interest, at all times, regardless of the everchanging social media and personal technology platforms available. This includes District employees posting images or private information about themselves or others in a manner readily accessible to students and other employees that is inappropriate as defined by policy 5:20, Workplace Harassment Prohibited; 5:100, Staff Development Program; 5:120, Employee Ethics; Conduct; and Conflict of Interest; 6:235, Access to Electronic Networks; 7:20, Harassment of Students Prohibited; and the Ill. Code of Educator Ethics, 23 Ill.Admin.Code §22.20.
2. Choose a District-provided or supported method whenever possible to communicate with students and their parents/guardians.

3. Not interfere with or disrupt the educational or working environment, or the delivery of education or educational support services.
4. Inform their immediate supervisor if a student initiates inappropriate contact with them via any form of personal technology or social media.
5. Report instances of suspected abuse or neglect discovered through the use of social media or personal technology pursuant to a school employee's obligations under policy 5:90, Abused and Neglected Child Reporting Child Reporting.
6. Not disclose student record information, including student work, photographs of students, names of students, or any other personally identifiable information about students, in compliance with policy 5:130, Responsibilities Concerning Internal Information. For District employees, proper approval may include implied consent under the circumstances.
7. Refrain from using the District's logos without permission and follow Board policy 5:170, Copyright, and all District copyright compliance procedures.
8. Use personal technology and social media for personal purposes only during non-work times or hours. Any duty-free use must occur during times and places that the use will not interfere with job duties or otherwise be disruptive to the school environment or its operation.
9. Assume all risks associated with the use of personal technology and social media at school or school-sponsored activities, including students' viewing of inappropriate Internet materials through the District employee's personal technology or social media. The Board expressly disclaims any responsibility for imposing content filters, blocking lists, or monitoring of its employees' personal technology and social media.
10. Be subject to remedial and any other appropriate disciplinary action for violations of this policy ranging from prohibiting the employee from possessing or using any personal technology or social media at school to dismissal and/or indemnification of the District for any losses, costs, or damages, including reasonable attorney fees, incurred by the District relating to, or arising out of, any violation of this policy.

The Superintendent shall:

1. Inform District employees about this policy during the in-service on educator ethics, teacher student conduct, and school employee-student conduct required by Board policy 5:120, *Ethics and Conduct*.
2. Direct Building Principals to annually:
  - a. Provide their building staff with a copy of this policy.
  - b. Inform their building staff about the importance of maintaining high standards in their school relationships.
  - c. Remind their building staff that those who violate this policy will be subject to remedial and any other appropriate disciplinary action up to and including dismissal.
3. Build awareness of this policy with students, parents, and the community.
4. Ensure that no one for the District, or on its behalf, requests of an employee or applicant access in any manner to his or her social networking website or requests passwords to such sites.
5. Periodically review this policy and any procedures with District employee representatives and electronic network system administrator(s) and present proposed changes to the Board.

### **USE OF TECHNICAL RESOURCES**

Richland County CUSD #1 maintains photocopiers, facsimile machines, and printers. Utilization of these technical resources is not to be conducted in any way that may be disruptive to Richland County CUSD #1 operations or in violation of Richland County CUSD #1 policy or law.

Richland County CUSD #1 technical resources are provided exclusively to assist in the conduct of the District's business; however, occasional use of technical resources for personal purposes is permissible so long as it does not interfere with business or the employee's assigned duties, is not related to outside school business activities, does not conflict the District's policy or law, and is approved by the building principal.

Information sent and stored on facsimile machines is the property of Richland County CUSD #1. By using the District's technical resources, all individuals knowingly and voluntarily consent to their usage being monitored



and acknowledge the District's right to conduct such monitoring. Individuals should not expect that facsimile transmissions are confidential or private, and should be aware that all types of business records are subject to inspection, review, or disclosure without prior notice for any business purpose or as required by law. In general, these communications are treated no differently than any other business record or correspondence, and may be used in administrative, judicial, or other proceedings.

### **SCHEDULES & EMPLOYMENT YEAR**

The Superintendent shall supervise a process for setting work schedules and an employment year for educational support employees in accordance with State and federal law, School Board policy, and applicable agreements and shall:

1. Assign each employee one supervisor who will establish a work schedule, including breaks, as required by building or District needs, work load, and the efficient management of human resources;
2. Allow for the ability to respond to changing circumstances by altering work schedules as needed; and
3. Consider the well-being of the employee. The Superintendent's approval is required to establish a flexible work schedule or job-sharing.

### **PUBLIC RELATIONS AND TELEPHONE CALLS**

It is important that District phones be kept clear for District business. Personal calls are acceptable; however, proper discretion is advised. First impressions are very important and when answering the phone employees shall greet the caller with "Good Morning or Good Afternoon, Richland County CUSD #1, John/Jane Doe speaking." Employees who answer the phone should do so promptly and in a businesslike manner. Employees will be held responsible for paying for all non-business-related long distance phone calls.

### **CELLULAR PHONE POLICY**

This policy outlines the use of personal cell phones at work, the personal use of District cell phones and the safe use of cell phones by employees. This policy applies to phone calls, text messaging, pictures, etc. Richland County CUSD #1 does not expect employees to use their personal cell phones for business use.

### **PERSONAL CELLULAR PHONES**

While at work employees are expected to exercise the same discretion in using personal cellular phones as is expected for the use of District phones. Excessive personal calls during the workday, regardless of the phone used, can interfere with employee productivity and be distracting to others. Employees are therefore encouraged to make personal calls on non-work time where possible and to ensure that friends and family members are aware of the District's policy. Flexibility will be provided in circumstances demanding immediate attention.

The District will not be liable for the loss of personal cellular phones brought into the workplace.

### **PERSONAL USE OF DISTRICT-PROVIDED CELLULAR PHONES**

Where job responsibilities or District needs demand immediate access to an employee the District may issue a District cell phone to an employee for District-related communications. In order to protect the employee from incurring a tax liability for the personal use of this equipment, employees will be required to reimburse the District for any personal calls on a District issued cell phone. Phone logs will be audited regularly to ensure compliance with this policy.

### **Safety Issues for Cellular Phone Use**

Employees whose job responsibilities include regular or occasional driving and who are issued a cell phone for District use are expected to use good judgment in using their cell phone. Safety must come before all other concerns. Regardless of the circumstances, including slow or stopped traffic, employees are strongly encouraged to pull off to the side of the road and safely stop the vehicle before placing or accepting a call. If acceptance of a call is unavoidable and pulling over is not an option, employees are expected to keep the call

short, use hands-free options if available, refrain from discussion of complicated or emotional discussions and keep their eyes on the road. Special care should be taken in situations where there is traffic, inclement weather, or the employee is driving in an unfamiliar area.

Employees whose job responsibilities do not specifically include driving as an essential function, but who are issued a cell phone for District use, are also expected to abide by the provisions above. Under no circumstances are employees allowed to place themselves at risk to fulfill District needs.

Employees who are charged with traffic violations resulting from the use of their phone while driving will be solely responsible for all liabilities that result from such actions.

### **DISTRICT TOOLS AND EQUIPMENT**

The District may supply all equipment, tools, or other items to assist in the performance of duties. All items shall be collected at the end of the workday and returned to their proper location.

### **DISTRICT VEHICLES**

All employees must get authorization to use District vehicles. When using District vehicles, employees must follow all State and Federal laws. Employees shall pay any tickets in violation of the law. An employee must agree to pre-employment and regular checks of MVR and are required to maintain a good driving record in order to drive District vehicles.

### **PARKING**

All employees shall park on District premises in a designated area. Employees will refrain from parking in designated visitor parking and handicap parking spaces.

### **DRESS STANDARDS**

The District's image is reflected in employees' dress and appearance which must not disrupt the educational process, interfere with the maintenance of a positive teaching/learning climate, or compromise reasonable standards of health, safety, or decency. Good grooming and tasteful attire is essential.

### **COMMUNICABLE AND CHRONIC INFECTIOUS DISEASE (5:40)**

The Superintendent shall develop and implement procedures for dealing with known or suspected cases of a communicable and chronic infectious disease involving a District employee consistent with State and federal law, rules of the Illinois Department of Public Health, and Board of Education policies.

An employee with a communicable or chronic infectious disease shall be evaluated by the District's Communicable and Chronic Infectious Disease Review Team. The employee's medical records shall be held in strictest confidence by the Team, with only the employee's direct supervisors being informed of the employee's medical condition and anyone with a need to know in the event of an emergency.

Employees with a communicable or chronic infectious disease will be permitted to retain their positions whenever, after reasonable accommodations and without undue hardship, there is no substantial risk of transmission of the disease to others, provided an employee is able to continue to perform the position's essential functions. Employees who cannot retain their positions shall remain subject to the Board's employment policies including sick leave, physical examinations, temporary and permanent disability, and termination. Determining whether an employee with a communicable or chronic infectious disease may retain his or her position will be made in accordance with established procedures.

The recommendation of whether the employee's placement is appropriate shall be made on a case-by-case basis by the District's Communicable and Chronic Infectious Disease Review Team.

**BLOODBORNE PATHOGENS**

The District recognizes the potential risk its staff has to accidental occupational exposure to bloodborne pathogens and desires to educate and protect employees to minimize the possibility of exposure. The Bloodborne Pathogens Exposure Control Plan contains specific information regarding the District's policies and procedures.

All employees of the District are instructed as to the correct handling of body fluids and tissue. All positions in the District have been categorized into classifications to determine the likelihood of occupational exposure to blood, body fluids or tissue from other people. Classification I employees hold positions in which required tasks routinely involve a potential for that exposure. These employees and all others who are involved in an exposure incident are entitled to receive vaccinations for Hepatitis B at the District's expense. Classification I employees receive a handbook and appropriate cleanup materials to properly handle incidents.

**ADMINISTRATION OF MEDICATION TO STUDENTS (7:270)**

Students should not take medication during school hours or during school-related activities unless it is necessary for a student's health and well-being. When a student's licensed health care provider and parent/guardian believe that it is necessary for the student to take a medication during school hours or school-related activities, the parent/guardian must request that the school dispense the medication to the child and otherwise follow the District's procedures on dispensing medication.

No School district employee shall administer to any student, or supervise a student's self-administration of, any prescription or non-prescription medication until a completed and signed "*School Medication Authorization Form*" is submitted by the student's parent/guardian. No student shall possess or consume any prescription or non-prescription medication on school grounds or at a school-related function other than as provided for in this policy and its implementing procedures.

Nothing in this policy shall prohibit any school employee from providing emergency assistance to students, including administering medication.

The Building Principal shall include this policy in the Student Handbook and shall provide a copy to the parents/guardians of students.

**Self-Administration of Medication**

A student may possess and self-administer an epinephrine injector, e.g., EpiPen®, and/or asthma medication prescribed for use at the student's discretion, provided the student's parent/guardian has completed and signed an SMA Form. The Superintendent or designee will ensure an Emergency Action Plan is developed for each self-administering student.

A student may self-administer medication required under a qualifying plan, provided the student's parent/guardian has completed and signed an SMA Form. A qualifying plan means: (1) an asthma action plan, (2) an Individual Health Care Action Plan, (3) an Ill. Food Allergy Emergency Action Plan and Treatment Authorization Form, (4) a plan pursuant to Section 504 of the federal Rehabilitation Act of 1973, or (5) a plan pursuant to the federal Individuals with Disabilities Education Act.

The District shall incur no liability, except for willful and wanton conduct, as a result of any injury arising from a student's self-administration of medication, including asthma medication or epinephrine injectors, or medication required under a qualifying plan. A student's parent/guardian must indemnify and hold harmless the District and its employees and agents, against any claims, except a claim based on willful and wanton conduct, arising out of a student's self-administration of an epinephrine injector, and/or asthma medication, and/or a medication required under a qualifying plan.

School District Supply of Undesignated Asthma Medication

The Superintendent or designee shall implement 105 ILCS 5/22-30(f) and maintain a supply of undesignated asthma medication in the name of the District and provide or administer them as necessary according to State law. Undesignated asthma medication means an asthma medication prescribed in the name of the District or one of its schools. A school nurse or trained personnel, as defined in State law, may administer an undesignated asthma medication to a person when they, in good faith, believe a person is having respiratory distress. Respiratory distress may be characterized as mild-to-moderate or severe. Each building administrator and/or his or her corresponding school nurse shall maintain the names of trained personnel who have received a statement of certification pursuant to State law.

School District Supply of Undesignated Epinephrine Injectors

The Superintendent or designee shall implement 105 ILCS 5/22-30(f) and maintain a supply of undesignated epinephrine injectors in the name of the District and provide or administer them as necessary according to State law. Undesignated epinephrine injector means an epinephrine injector prescribed in the name of the District or one of its schools. A school nurse or trained personnel, as defined in State law, may administer an undesignated epinephrine injector to a person when they, in good faith, believe a person is having an anaphylactic reaction. Each building administrator and/or his or her corresponding school nurse shall maintain the names of trained personnel who have received a statement of certification pursuant to State law.

School District Supply of Undesignated Opioid Antagonists

The Superintendent or designee shall implement 105 ILCS 5/22-30(f) and maintain a supply of undesignated opioid antagonists in the name of the District and provide or administer them as necessary according to State law. Opioid antagonist means a drug that binds to opioid receptors and blocks or inhibits the effect of opioids acting on those receptors, including, but not limited to, naloxone hydrochloride or any other similarly acting drug approved by the U.S. Food and Drug Administration. Undesignated opioid antagonist is not defined by the School Code; for purposes of this policy it means an opioid antagonist prescribed in the name of the District or one of its schools. A school nurse or trained personnel, as defined in State law, may administer an undesignated opioid antagonist to a person when they, in good faith, believe a person is having an opioid overdose. Each building administrator and/or his or her corresponding school nurse shall maintain the names of trained personnel who have received a statement of certification pursuant to State law. See the website for the Ill. Dept. of Human Services for information about opioid prevention, abuse, public awareness, and a toll-free number to provide information and referral services for persons with questions concerning substance abuse treatment.

School District Supply of Undesignated Glucagon

The Superintendent or designee shall implement 105 ILCS 145/27 and maintain a supply of undesignated glucagon in the name of the District in accordance with manufacturer's instructions.

When a student's prescribed glucagon is not available or has expired, a school nurse or delegated care aide may administer undesignated glucagon only if he or she is authorized to do so by a student's diabetes care plan.

Administration of Medical Cannabis

The Compassionate Use of Medical Cannabis Program Act allows a medical cannabis infused product to be administered to a student by one or more of the following individuals:

1. A parent/guardian of a student who is a minor to who registers with the Ill. Dept. of Public Health (IDPH) as a designated caregiver to administer medical cannabis to their child. A designated caregiver may also be another individual other than the student's parent/guardian. Any designated caregiver must be at least 21 years old and is allowed to administer a medical cannabis infused product to a child who is a student on the premises of his or her school or on his or her school bus if:
  - a. Both the student and the designated caregiver possess valid registry identification cards issued by IDPH;
  - b. Copies of the registry identification cards are provided to the District;
  - c. That student's parent/guardian completed, signed, and submitted a School Medication Authorization Form - Medical Cannabis; and

- d. After administering the product to the student, the designated caregiver immediately removes it from school premises or the school bus.
2. A properly trained school nurse or administrator, who shall be allowed to administer the medical cannabis infused product to the student on the premises of the child's school, at a school-sponsored activity, or before/after normal school activities, including while the student is in before-school or after-school care on school-operated property or while being transported on a school bus.
3. The student him or herself when the self-administration takes place under the direct supervision of a school nurse or administrator.

Medical cannabis infused product (product) includes oils, ointments, foods, and other products that contain usable cannabis but are not smoked or vaped. Smoking and/or vaping medical cannabis is prohibited.

The product may not be administered in a manner that, in the opinion of the District or school, would create a disruption to the educational environment or cause exposure of the product to other students. A school employee shall not be required to administer the product.

Discipline of a student for being administered a product by a designated caregiver, or by a school nurse or administrator, or who self-administers a product under the direct supervision of a school nurse or administrator pursuant to this policy is prohibited. The District may not deny a student attendance at a school solely because he or she requires administration of the product during school hours.

#### Void Policy

**The School District Supply of Undesignated Asthma Medication** section of the policy is void whenever the Superintendent or designee is, for whatever reason, unable to: (1) obtain for the District a prescription for undesignated asthma medication from a physician or advanced practice nurse licensed to practice medicine in all its branches, or (2) fill the District's prescription for undesignated school asthma medication.

**The School District Supply of Undesignated Epinephrine Injectors** section of the policy is void whenever the Superintendent or designee is, for whatever reason, unable to: (1) obtain for the District a prescription for undesignated epinephrine injectors from a physician or advanced practice nurse licensed to practice medicine in all its branches, or (2) fill the District's prescription for undesignated school epinephrine injectors.

**The School District Supply of Undesignated Opioid Antagonists** section of the policy is void whenever the Superintendent or designee is, for whatever reason, unable to: (1) obtain for the District a prescription for opioid antagonists from a health care professional who has been delegated prescriptive authority for opioid antagonists in accordance with Section 5-23 of the Substance Use Disorder Act, or (2) fill the District's prescription for undesignated school opioid antagonists.

**The School District Supply of Undesignated Glucagon** section of the policy is void whenever the Superintendent or designee is, for whatever reason, unable to: (1) obtain for the District a prescription for glucagon from a qualifying prescriber, or (2) fill the District's prescription for undesignated school glucagon.

**The Administration of Medical Cannabis** section of the policy is void and the District reserves the right not to implement it if the District or school is in danger of losing federal funding.

Administration of Undesignated Medication Upon any administration of an undesignated medication permitted by State law the Superintendent or designee(s) must ensure all notifications required by State law and administrative procedures occur.

#### Undesignated Medication Disclaimers

Upon implementation of this policy, the protections from liability and hold harmless provisions applicable under State law apply.

No one, including without limitation, parents/guardians of students, should rely on the District for the availability of undesignated medication. This policy does not guarantee the availability of undesignated medications. Students and their parents/guardians should consult their own physician regarding these medication(s).

### **VISITORS TO AND CONDUCT ON SCHOOL PROPERTY (8:30)**

The following definitions apply to this policy:

**School property** – School buildings, and grounds, all District buildings and grounds, vehicles used for school purposes, and any location used for a School Board meeting, school athletic event, or other school-sponsored event,

**Visitor** – Any person other than an enrolled student or employee

All visitors to school property are required to report to the building Principal's office and receive permission to remain on school property. All visitors must sign a visitors' log, show identification, and wear a visitor's badge. When leaving the school, visitors must return their badge. On those occasions when large groups of parents and friends are invited onto school property, visitors are not required to sign in but must follow school officials' instructions. Persons on school property without permission will be directed to leave and may be subject to criminal prosecution.

Except as provided in the next paragraph, any person wishing to confer with a staff member should contact the staff member by telephone or email to make an appointment. Conferences with teachers are held, to the extent possible, outside school hours or during the teacher's conference/preparation period.

Requests to access a school building, facility, and/or educational program, or to interview personnel or a student for purposes of assessing the student's special education needs, should be made at the appropriate building. Access shall be facilitated according the guidelines from the Superintendent or designee.

The School District expects mutual respect, civility, and orderly conduct among all on school property or at a school event. No person on school property or at a school event (including visitors, students, and employees) shall:

1. Strike, injure, threaten, harass, or intimidate a staff member, Board member, sports official or coach, or any other person.
2. Behave in an unsportsmanlike manner, or use vulgar or obscene language.
3. Unless specifically permitted by State law, possess a weapon, any object that can reasonably be considered a weapon or looks like a weapon, or any dangerous device.
4. Damage or threaten to damage another's property.
5. Damage or deface school property.
6. Violate any Illinois law, or town or county ordinance.
7. Smoke or otherwise use tobacco products.
8. Distribute, consume, use, possess, or be impaired by or under the influence of an alcoholic beverage, cannabis, other lawful product, or illegal drug.
9. Be present when the person's alcoholic beverage, cannabis, other lawful product, or illegal drug consumption is detectable, regardless of when and/or where the use occurred.
10. Use or possess medical cannabis, unless he or she has complied with policy 7:270, *Administering Medicines to Students*, implementing *Ashley's Law*.
11. Impede, delay, disrupt, or otherwise interfere with any school activity or function (including using cellular phones in a disruptive manner).
12. Enter upon any portion of school premises at any time for purposes other than those that are lawful and authorized by the Board.

13. Operate a motor vehicle: (a) in a risky manner, (b) in excess of 20 miles per hour, or (c) in violation of an authorized District employee's directive.
14. Engage in any risky behavior, including roller-blading, roller-skating, or skateboarding.
15. Violate other District policies or regulations, or a directive from an authorized security officer or District employee.
16. Engage in any conduct that interferes with, disrupts, or adversely affects the District or a School function

#### Convicted Child Sex Offender

State law prohibits a child sex offender from being present on school property or loitering within 500 feet of school property when persons under the age of 18 are present, unless the offender is:

1. A parent/guardian of a student attending the school and the parent/guardian is: (i) attending a conference at the school with school personnel to discuss the progress of his or her child academically or socially, (ii) participating in child review conferences in which evaluation and placement decisions may be made with respect to his or her child regarding special education services, or (iii) attending conferences to discuss other student issues concerning his or her child such as retention and promotion and notifies the Building Principal of his or her presence at the school; or
2. Has permission to be present from the Board, Superintendent, or Superintendent's designee. If permission is granted, the Superintendent or Board President shall provide the details of the offender's upcoming visit to the Building Principal.

In all cases, the Superintendent, or designee who is a certified employee, shall supervise a child sex offender whenever the offender is in a child's vicinity.

#### Exclusive Bargaining Representative Agent

Authorized agents of an exclusive bargaining representative, upon notifying the Building Principal's office, may meet with a school employee (or group of employees) in the school building during free-times of such employees.

#### Enforcement

Any staff member may request identification from any person on school property; refusal to provide such information is a criminal act. The Building Principal or designee shall seek the immediate removal of any person who refuses to provide requested identification.

Any person who engages in conduct prohibited by this policy may be ejected from school property. The person is also subject to being denied admission to school events or meetings for up to one calendar year.

#### Procedures to Deny Future Admission to School Events or Meetings

Before any person may be denied admission to school events or meetings as provided in this policy, the person has a right to a hearing before the Board. The Superintendent may refuse the person admission pending such hearing. The Superintendent or designee must provide the person with a hearing notice, delivered or sent by certified mail with return receipt requested, at least 10 days before the Board hearing date. The hearing notice must contain:

1. The date, time, and place of the Board hearing.
2. A description of the prohibited conduct.
3. The proposed time period that admission to school events will be denied, and
4. Instructions on how to waive a hearing.

## **Employment Status**



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**DUTIES & QUALIFICATIONS (5:280)**

All support staff: (1) must meet qualifications specified in job descriptions, (2) must be able to perform the essential tasks listed and/or assigned, and (3) are subject to School Board policies as they may be changed from time to time at the Board's sole discretion.

**Paraprofessionals**

Paraprofessionals provide supervised instructional support. Service as a paraprofessional requires an educator license with stipulations endorsed for a paraprofessional educator unless a specific exemption is authorized by the Illinois State Board of Education (ISBE).

Individuals with only non-instructional duties (e.g., providing technical support for computers, providing personal care services, or performing clerical duties) are not paraprofessionals and the requirements in this section do not apply. In addition, individuals completing their clinical experiences and/or student teaching do not need to comply with this section, provided their service otherwise complies with ISBE rules.

**Noncertificated and Unlicensed Personnel Working with Students and Performing Non-Instructional Duties**

Noncertificated and unlicensed personnel performing non-instructional duties may be used:

1. For supervising study halls, long distance teaching reception areas used incident to instructional programs transmitted by electronic media (e.g., computers, video, and audio) detention and discipline areas, and school-sponsored extracurricular activities;
2. As supervisors, chaperones, or sponsors for non-academic school activities; or
3. For non-teaching duties not requiring instructional judgment or student evaluation

Nothing in this policy prevents a noncertificated person from serving as a guest lecturer or resource person under a certificated teacher's direction and with the administration's approval.

**Coaches and Athletic Trainers**

Athletic coaches and trainers shall have the qualifications required by any association in which the School District maintains a membership. Regardless of whether the athletic activity is governed by an association, the Superintendent or designee shall ensure that each athletic coach:

1. Is knowledgeable regarding coaching principles,
2. Has first aid training, and
3. Is a trained Automated External Defibrillator user according to rules adopted by the Illinois Department of Public Health. Anyone performing athletic training services shall be licensed under the Illinois Athletic Trainers Practice Act, be an athletic trainer aide performing care activities under the on-site supervision of a licensed athletic trainer, or otherwise be qualified to perform athletic trainer activities under State law.

**Bus Drivers**

All school bus drivers must have a valid school bus driver permit. The Superintendent or designee shall inform the Illinois Secretary of State, within 30 days of being informed by a school bus driver, that the bus driver permit holder has been called to active duty. New bus drivers and bus drivers who are returning from a lapse in their employment are subject to the requirements contained in Board Policy 5:30, *Hiring Process and Criteria* and Board Policy 5:285, *Drug and Alcohol Testing for School Bus and Commercial Vehicle Drivers*.

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## **COMPLIANCE WITH FAIR LABOR STANDARDS ACT (5:35)**

### **Job Classifications**

The Superintendent will ensure that all job positions are identified as either “exempt” or “non-exempt” according to State law and the Fair Labor Standards Act (FLSA) and that employees are informed whether they are “exempt” or “non-exempt”

“Exempt” and “non-exempt” employee categories may include certificated and non-certificated job positions. All non-exempt employees, whether paid on a salary or hourly basis, are covered by minimum wage and overtime provisions.

### **Workweek and Compensation**

The workweek for District employees will be 12:00 a.m. Saturday until 11:59 p.m. Friday. Non-exempt employees will be compensated for all hours worked in a workweek including overtime. For non-exempt employees paid a salary, the salary is paid for a 40-hour workweek even if an employee is scheduled for less than 40 hours. “Overtime” is worked in excess of 40 hours in a single workweek.

### **Overtime**

The School Board discourages overtime work by non-exempt employees. A non-exempt employee shall not work overtime without his or her supervisor’s express approval. All supervisors of non-exempt employees shall:

1. Monitor overtime use on a weekly basis and report such use to the business office,
2. Seek the Superintendent or designee’s written pre-approval for any long term or repeated use of overtime that can be reasonably anticipated,
3. Ensure that overtime provisions of this policy and the FLSA are followed, and
4. Ensure that employees are compensated for any overtime worked.

Accurate and complete time sheets of actual hours worked during the workweek shall be signed by each employee and submitted to the business office. The business office will review work records of employees on a regular basis, make an assessment of overtime use, and provide the assessment to the Superintendent. In lieu of overtime compensation, non-exempt employees may receive compensatory time-off, according to Board policy 5:310, *Compensatory Time-Off*.

### **Suspension Without Pay**

No exempt employee shall have his or her salary docked, such as by an unpaid suspension, if the deduction would cause a loss of the exempt status. Certificated employees may be suspended without pay in accordance with Board policy 5:240, *Professional Personnel - Suspension*. Non-certificated employees may be suspended without pay in accordance with Board policy 5:290, *Educational Support Personnel - Employment Termination and Suspensions*.

### **Implementation**

The Superintendent or designee shall implement the policy in accordance with the FLSA, including its required notices to employees. In the event of a conflict between the policy and State or federal law, the latter shall control.

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## **EMPLOYMENT TERMINATION AND SUSPENSIONS (5:290)**

### **Resignation and Retirement**

An employee is requested to provide two weeks' notice of a resignation. A resignation notice cannot be revoked once given. An employee planning to retire should notify his or her supervisor at least two months before the retirement date.

### **Non-RIF Dismissal**

The District may terminate an at-will employee at any time for any or no reason, but not for a reason prohibited by State or federal law.

Employees who are employed annually or have a contract, or who otherwise have a legitimate expectation of continued employment, may be dismissed: (1) at the end of the school year or at the end of their respective contract after being provided appropriate notice and after compliance with any applicable contractual provisions, or (2) mid-year or mid-contract provided appropriate due process procedures are provided.

The Superintendent is responsible for making dismissal recommendations to the School Board consistent with the Board's goal of having a highly qualified, high performing staff. This includes recommending a non-licensed employee for immediate dismissal for willful or negligent failure to report an instance of suspected child abuse or neglect as required by 325 ILCS 5/.

### **Reduction in Force and Recall**

The Board may, as necessary or prudent, decide to decrease the number of educational support personnel or to discontinue some particular type of educational support service and, as a result of that action, dismiss or reduce the hours of one or more educational support employees. When making decisions concerning reduction in force and recall, the Board will follow Sections 10-22.34c (outsourcing non-instructional services) and 10-23.5 (procedures) of the School Code, to the extent they are applicable and not superseded by legislation or an applicable collective bargaining agreement.

### **Final Paycheck**

A terminating employee's final paycheck will be adjusted for any unused, earned vacation credit. Employees are paid for all earned vacation. Terminating employees will receive their final pay on the next regular payday following the date of termination, except that an employee dismissed due to a reduction in force shall receive his or her final paycheck on or before the next regular pay date following the last day of employment.

### **Suspension**

Except as provided below, the Superintendent is authorized to suspend an employee without pay as a disciplinary measure, during an investigation into allegations of misconduct or pending a dismissal hearing whenever, in the Superintendent's judgment, the employee's presence is detrimental to the District. A disciplinary suspension shall be with pay: (1) when the employee is exempt from the overtime provisions, or (2) until an employee with an employment contract for a definite term is provided a notice and hearing according to the suspension policy for professional employees. Upon receipt of a recommendation from the Ill. Dept. Children and Family Services (DCFS) that the District remove an employee from his or her position when he or she is the subject of a pending DCFS investigation that relates to his or her employment with the District, the Board or Superintendent or designee, in consultation with the Board Attorney, will determine whether to:

1. Let the employee remain in his or her position pending the outcome of the investigation; or
2. Remove the employee as recommended, proceeding with:

- a. A suspension with pay; or
- b. A suspension without pay.

Any criminal conviction resulting from the investigation or allegations shall require the employee to repay to the District all compensation and the value of all benefits received by the employee during the suspension. The Superintendent will notify the employee of this requirement when the employee is suspended.

### **REPORTING ABSENCES & ATTENDANCE**

To maintain a productive work environment, the District expects employees to be reliable and to be punctual in reporting for scheduled work. Absenteeism and tardiness place a burden on other employees and on the District. In the rare instances when employees cannot avoid being late to work or are unable to work as scheduled, they are required to notify their supervisor as soon as possible before they are scheduled to work.

Poor attendance and excessive tardiness are disruptive. Either may lead to disciplinary action, up to and including discharge. Absence of three working days without reporting will be considered a voluntary resignation.

### **EMPLOYMENT RECORD/EMPLOYEE STATUS CHANGES**

Any changes in name, address, phone numbers, marital status, and persons to be contacted in case of an emergency must be turned into the Unit Office as soon as possible in order to keep your records current.

## **Compensation Policies**

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**PAYROLL PERIOD/TIME CARDS/PAY DAY**

All non-exempt employees are paid every two weeks. Each pay summary will include earnings for all work performed through the end of the previous payroll period.

We provide direct deposit for all employees to simplify payroll processing. Employee's payroll earnings will be deposited directly into their checking or savings account as designated on the payroll deduction authorization form and acknowledged on the payroll record. Please note that the District deposits payroll earnings to our main bank, which is subsequently deposited to employees individual banks based on the schedule for posting at each local banking facility.

Accurately recording time worked is the responsibility of every non-exempt employee. Time worked is all the time actually spent on the job performing assigned duties. Altering, falsifying, tampering with time records, or recording time on another employee's time record may result in disciplinary action up to and including discharge. Both the administrator/supervisor and the employee can be held responsible for any of these dishonest actions, which may result in criminal prosecution. All non-exempt employees shall ensure accurate reporting of hours worked and shall sign completed time record.

The building administrator/supervisor will review and then sign the time record before submitting it to payroll for processing. In addition, if the employee makes corrections or modifications to the time record, the administrator/supervisor must verify the accuracy of the changes by signing the time record. Time is calculated by using a fifteen-minute interval for determining "hours worked" and recording of time worked by all non-exempt employees.

**MEAL & BREAK PERIODS (5:300)**

An employee who works at least 6.5 continuous hours shall receive a 30-minute duty-free meal break that begins within the first 5 hours of the employee's workday.

**EXPENSES (5:60)**

The Board regulates the reimbursement of all travel, meal, and lodging expenses by resolution. Money shall not be advanced or reimbursed, or purchase orders issued for: (1) the expenses of any person except the employee, (2) anyone's personal expenses, or (3) entertainment expenses. Entertainment includes, but is not limited to, shows, amusements, theaters, circuses, sporting events, or any other place of public or private entertainment or amusement, unless the entertainment is ancillary to the purpose of the program or event. Employees must submit the appropriate itemized, signed, standardized form(s) to support any requests for expense advancements, reimbursements, or purchase orders that show the following:

1. The amount of the estimated or actual expense, with attached receipts for actual incurred expenses.
2. The name and title of the employee who is requesting the expense advancement or reimbursement. Receipts from group functions must include the names, offices, and job titles of all participants.
3. The date(s) of the official business on which the expense advancement, reimbursement, or purchase order will be or was expended.
4. The nature of the official business conducted when the expense advancement, reimbursement, or purchase order will be or was expended.

**Advancements**

The Superintendent may advance expenses to teachers and other licensed employees for the anticipated actual and necessary expenses to be incurred while attending meetings that are related

to their duties and will contribute to their professional development, provided they fall below the maximum allowed in the Board's expense regulations.

Expense advancement requests must be submitted to the Superintendent or designee on the District's standardized estimated expense approval form for employees. After spending expense advancements, employees must use the District's standardized expense reimbursement form and submit to the Superintendent: (a) the itemized, signed advancement voucher that was issued, and (b) the amount of actual expenses by attaching receipts. Any portion of an expense advancement not used must be returned to the District. Expense advancements and vouchers shall be presented to the Board in its regular bill process.

#### Reimbursements and Purchase Orders

Expense reimbursements and purchase orders may be issued by the Superintendent or designee to employees, along with other expenses necessary for the performance of their duties, provided the expenses fall below the maximum allowed in the Board's expense regulations.

Expense reimbursements and purchase order approvals are not guaranteed and, when possible, employees should seek pre-approval of expenses by providing an estimation of expenses on the District's standardized estimated expense approval form for employees, except in situations when the expense is diminutive. When pre-approval is not sought, employees must seek reimbursement on the District's standardized expense reimbursement form for employees. Expense reimbursements and purchase orders shall be presented to the Board in its regular bill process.

#### Use of Credit and Procurement Cards

Credit and procurement card usage is governed by policy 4:55, *Use of Credit and Procurement Cards*.

#### Exceeding the Maximum Allowable Expense Amount(s)

All requests for expense advancements, reimbursements, and purchase orders exceeding the maximum allowed in the Board's expense regulations may only be approved when:

1. The Board's resolution to regulate expenses allows for such approval;
2. An emergency or other extraordinary circumstance exists; and
3. The request is approved by a roll call vote at an open Board meeting.

#### Registration

When possible, registration fees will be paid by the District in advance.

#### Travel

The least expensive method of travel will be used, provided that no hardship will be caused to the employee. Employees will be reimbursed for:

1. Air travel at the coach or economy class commercial airline rate. First class or business class air travel will be reimbursed only if emergency circumstances warrant. The emergency circumstances must be explained on the expense form and Board approval of the additional expense is required. Copies of airline tickets must be attached to the expense form.
2. Rail or bus travel at actual cost. Rail or bus travel costs may not exceed the cost of coach airfare. Copies of tickets must be attached to the expense form to substantiate amounts.
3. Use of personal automobiles at the standard mileage rate approved by the Internal Revenue Service for income tax purposes. The reimbursement may not exceed the cost of coach airfare. Mileage for use of personal automobiles in trips to and from

- transportation terminals will also be reimbursed. Toll charges and parking costs will be reimbursed.
4. Automobile rental costs when the vehicle's use is warranted. The circumstances for such use must be explained on the expense form.
  5. Taxis, airport limousines, or other local transportation costs.

#### Meals

Meals charged to the District should represent mid-fare selections for the hotel/meeting facility or general area. Tips are included with meal charges. Expense forms must explain the meal charges incurred. Alcoholic beverages will not be reimbursed.

#### Maximum Meal Reimbursement Amounts

Breakfast - \$16.00

Lunch - \$19.00

Dinner - \$28.00

#### Lodging

Employees should request conference rate or mid-fare room accommodations. A single room rate will be reimbursed. Employees should pay personal expenses at checkout. If that is impossible, deductions for the charges should be made on the expense form.

#### Miscellaneous Expenses

Employees may seek reimbursement for other expenses incurred while attending a meeting sponsored by organizations described herein by fully describing the expenses on the expense form, attaching receipts.



# Beginning Educational Support Staff Salaries and Substitute Salaries

Effective July 1, 2025

| <b>Beginning Salary</b>                    | <b>Pay Rate (Starting)</b> |
|--------------------------------------------|----------------------------|
| Bookkeeper                                 | \$26.00 per hour           |
| Assistant Bookkeeper                       | \$22.00 per hour           |
| Administrative Assistant (District)        | \$24.00 per hour           |
| District Secretary                         | \$19.00 per hour           |
| Data Management Specialist                 | \$23.00 per hour           |
| Medicaid Billing Clerk                     | \$17.00 per hour           |
| Building Secretary                         | \$17.00 per hour           |
| Guidance Secretary (High School)           | \$18.00 per hour           |
| Office Manager (Elem. School/High School/) | \$19.00 per hour           |
| District Maintenance                       | \$26.00 per hour           |
| Technology Systems Specialist              | \$24.00 per hour           |
| Technology Systems Technician              | \$21.00 per hour           |
| Facility Manager (Head Custodian)          | \$21.00 per hour           |
| Custodian                                  | \$19.00 per hour           |
| Food Service Director                      | \$24.00 per hour           |
| Food Service Supervisor (Head Cook)        | \$19.00 per hour           |
| Food Service (Cook)                        | \$17.00 per hour           |
| Paraprofessionals                          | \$17.00 per hour           |
| Teacher Assistants                         | \$19.00 per hour           |
| Transportation Fleet Supervisor            | \$26.00 per hour           |
| Transportation Mechanic                    | \$22.00 per hour           |
| Transportation Assistant                   | \$21.00 per hour           |
| Transportation Secretary                   | \$17.00 per hour           |
| Bus Driver (Regular)                       | \$80.00 per day            |
| Bus Driver (Special Ed)                    | \$20.00 per hour           |
| Bus Driver (Pre-K)                         | \$20.00 per hour           |
| Bus Aide                                   | \$17.00 per hour           |
| Summer Maintenance (High School/Graduate)  | \$16.00 per hour           |
| Summer Maintenance (College Student)       | \$16.50 per hour           |
| Summer Maintenance (Staff)                 | \$18.00 per hour           |

| <b>Substitute Salary:</b> | <b>New Rate</b>                                        |
|---------------------------|--------------------------------------------------------|
| Secretary                 | \$16.50 per hour<br>(\$17.50 per hour retired RCCU #1) |
| Custodian                 | \$18.50 per hour<br>(\$19.50 per hour retired RCCU #1) |
| Cook                      | \$16.50 per hour<br>(\$17.50 per hour retired RCCU #1) |
| Paraprofessional          | \$16.50 per hour<br>(\$17.50 per hour retired RCCU #1) |
| Teacher Assistant         | \$18.50 per hour<br>(\$19.50 per hour retired RCCU #1) |
| Bus Driver (Regular)      | \$80.00 per day<br>(\$85.00 per day retired RCCU #1)   |
| Bus Driver (Special Ed)   | \$20.00 per hour<br>(\$21.00 per hour retired RCCU #1) |
| Bus Aide                  | \$16.50 per hour<br>(\$17.50 per hour retired RCCU #1) |

Effective Date: 7-24-2025

|         |                                                        |
|---------|--------------------------------------------------------|
| Teacher | \$135.00 per day<br>(\$145.00 per day retired RCCU #1) |
|---------|--------------------------------------------------------|

## Teacher Assistants

- Persons hired as a Teacher Assistant will be required to obtain their Substitute Teacher License. They will be reimbursed for the cost of the license after being employed 90 days with RCCU#1.

### Transportation

- New Drivers will be paid at the beginning hourly rate for the following items related to securing a bus license.
  - Initial Bus course through the state (8 hours)
  - Federal MAP-21 ELDT course (up to 4 hours)
  - Driving with Fleet Supervisor (up to 4 hours)
- The driver will be paid for the above hours once he/she has been employed 90 days with RCCU #1.

## **Benefits**

**EMPLOYMENT PERIODS, SICK DAYS, VACATION, HOLIDAYS, AND LEAVES (5.330)**

Each of the provisions in this policy applies to all educational support personnel to the extent that it does not conflict with an applicable collective bargaining agreement or individual employment contract or benefit plan; in the event of a conflict, such provision is severable and the applicable bargaining agreement or individual agreement will control.

**HOLIDAYS (5:330)**

Unless the District receives a waiver or modification of The School Code pursuant to Section 2-3.25g, allowing it to schedule school on a holiday listed below, District employees will be paid for, but will not be required to work on:

|                                   |                               |
|-----------------------------------|-------------------------------|
| New Year's Eve                    | New Year's Day                |
| Martin Luther King Jr.'s Birthday | Abraham Lincoln's Birthday    |
| Casimir Pulaski's Birthday        | Good Friday                   |
| Monday following Easter           | Memorial Day                  |
| Juneteenth National Freedom Day*  | Labor Day                     |
| Independence Day                  | Veteran's Day                 |
| Columbus Day                      | 2024 Election Day             |
| Thanksgiving Day                  | Friday following Thanksgiving |
| Christmas Eve                     | Christmas Day                 |

A holiday will not cause a deduction from an employee's time or compensation. The District may require educational support personnel to work on a legal school holiday during an emergency or for the continued operation and maintenance of facilities or property.

\*Juneteenth National Freedom Day will only be observed if falls on a scheduled workday.

**RELIGIOUS HOLIDAYS (5:70)**

Supervisors shall grant an employee's request for time off to observe a religious holiday if the employee gives at least 5 days prior notice and the absence does not cause an undue hardship.

Employees may use earned vacation time, holiday time, or personal leave to make up the absence. A per diem deduction may also be requested by the employee.

**SICK AND BEREAVEMENT LEAVE (5:330)**

Full or part-time educational support personnel who work at least 600 hours per year receive paid sick leave as per the table below. Part-time employees will receive sick leave pay equivalent to their regular workday. Unused sick leave may accumulate.

Sick leave is defined in State law as personal illness, mental or behavioral complications, quarantine at home, serious illness or death in the immediate family or household, or birth, adoption, placement for adoption, or the acceptance of a child in need of foster care. The Superintendent or designee shall monitor the use of sick leave.

As a condition for paying sick leave after 3 days absence for personal illness or 30 days for birth or as the Board or Superintendent deem necessary in other cases, the Board or Superintendent may require that the staff member provide a certificate from: (1) a licensed physician to practice medicine and surgery in all its branches, (2) a mental health professional licensed in Illinois providing ongoing care or treatment to the staff member (3) a chiropractic physician licensed under the Medical

Practice Act, (4) an licensed advanced practice registered nurse, (5) a physician assistant who has been delegated the authority to perform health examinations by his or her supervising physician, or (6) if the treatment is by prayer or spiritual means, a spiritual adviser or practitioner of the employee's faith. If the Board or Superintendent requires a certificate during a leave of less than 3 days, for personal illness, the District shall pay the expenses incurred by the employee.

The use of paid sick leave for adoption or placement for adoption is limited to 30 days unless a longer leave is provided in an applicable collective bargaining agreement. The Superintendent may require that the employee provide evidence that the formal adoption process is underway.

All employees' unused sick leave shall, upon separation from employment be credited to IMRF for service credit purposes. Effective July 1, 2021, upon retirement, resignation, or termination of employment, the Board agrees to pay educational support employees for unused accumulated sick leave which is not used for service credit to IMRF at the rate of \$50.00 per day up to a maximum onetime benefit of \$5,000.00. No employee shall be compensated a benefit for unused sick leave in excess of \$5,000.00. Employees may choose to turn in unused sick leave for compensation (up to a maximum of \$5,000.00 at a rate of \$50.00 per day) in lieu of the District reporting sick leave to IMRF for service credit. Uncompensated sick days will be reported to IMRF on behalf of the educational support employee for service credit with IMRF upon retirement. An employee desiring postemployment compensation (which shall be paid no earlier than sixty (60) days following issuance of the employee's final paycheck) for unused and uncredited accumulated sick leave shall notify the Board not later than his or her final date of work that he or she intends to be paid for sick leave in lieu of unused sick leave being reported to IMRF on his or her behalf.

If an eligible employee notifies the Board in writing no later than sixty (60) days in advance of his or her intended resignation and retirement, compensation for unused sick leave will be added to the employee's IMRF creditable earnings before the issuance of the employee's final paycheck so that IMRF creditable compensation for the 12 month period preceding such resignation and retirement increases up to a maximum of a gross total six percent (6%) increase in total IMRF creditable earnings over the prior year's income. Any unused and uncredited to IMRF sick leave monies that are not paid to the employee in his or her final paycheck because of the 6% limit will be considered a post-retirement severance benefit and will be paid to the employee no earlier than the 60 th day following the employee's last day of work. The purpose of such post-retirement payment is to avoid pension penalties, excess contributions or accelerated payments, and to shelter and shield the amount paid from retirement credit. In the event a penalty or accelerated assessment is charged to the District, the amount of the compensation provided for hereinabove shall be immediately reduced to fall within that penalty, and the parties shall meet to discuss how the Board will comply with the award of sick leave compensation set forth above in a manner which will not cause a pension payment or liability.

### **PERSONAL LEAVE (5:330)**

Full-time educational support personnel have three personal leave days per year. The use of a personal day is subject to the following conditions:

1. Except in cases of emergency for unavoidable situations, a personal leave request should be submitted to the Building Principal 3 days in advance of the requested date.
2. No personal leave day may be used immediately before or immediately after a holiday, or during the first and/or last 5 days of the school year, unless prior approval is granted by the Superintendent.
3. Personal leave may not be used in increments of less than one-half day.
4. Personal leave days are subject to any necessary replacement's availability.
5. Personal leave days may not be used on an in-service training day and/or institute training days.

6. Personal leave may not be used when the employee's absence would create an undue hardship.

#### Leave to Serve as a Trustee of the Illinois Municipal Retirement Fund

Upon request, the Board will grant 20 days of paid leave of absence per year to a trustee of the Illinois Municipal Retirement Fund in accordance with 105 ILCS 5/24-6.3.9

#### Other Leaves

Educational support personnel receive the following leaves on the same terms and conditions granted professional personnel in Board policy 5:250, Leaves of Absence:

1. Leaves for Service in the Military and General Assembly
2. School Visitation Leave
3. Leaves for Victims of Domestic or Sexual Violence
4. Child Bereavement Leave
5. Leave to serve as an election judge

#### **VACATION (5:330)**

Twelve-month employees shall be eligible for paid vacation days as per the table below. Part-time employees who work at least half-time are entitled to vacation days on the same basis as full-time employees, but the pay will be based on the employee's average number of part-time hours per week during the last vacation accrual year. The Superintendent will determine the procedure for requesting vacation.

Vacation days earned in one fiscal year must be used by the end of the following fiscal year; they do not accumulate. Any exceptions must be pre-approved by the Superintendent.

Employees resigning or whose employment is terminated are entitled to the monetary equivalent of all earned vacation.

| Category                                                         | Employment Period | # of Sick/<br>Bereavement<br>Days | # of Personal<br>Days | # of Vacation<br>Days                 | Holidays   |
|------------------------------------------------------------------|-------------------|-----------------------------------|-----------------------|---------------------------------------|------------|
| Teacher aides,<br>teacher<br>assistants,<br>supervision<br>aides | 174 days          | 12                                | 3                     | 0                                     | 0 non-paid |
| Custodians                                                       | 12 months         | 15                                | 3                     | 10 days; 15<br>days after 10<br>years | 17         |
| Bus drivers                                                      | 176 days          | 10                                | 3                     | 0                                     | 0          |
| Cooks                                                            | 176               | 12                                | 3                     | 0                                     | 0          |
| Mechanics                                                        | 12 months         | 15                                | 3                     | 10 days; 15<br>days after 10<br>years | 17         |
| Maintenance                                                      | 12 months         | 15                                | 3                     | 10 days; 15<br>days after 10<br>years | 17         |
| District Staff                                                   | 12 months         | 15                                | 3                     | 10 days; 15<br>days after 10<br>years | 17         |

|             |                 |       |   |   |   |
|-------------|-----------------|-------|---|---|---|
| Secretaries | 180-220<br>days | 12-14 | 3 | 0 | 0 |
|-------------|-----------------|-------|---|---|---|

### **FAMILY BEREAVEMENT LEAVE (5:250)**

State law allows a maximum of 10 unpaid work days for eligible employees (Family and Medical Leave Act of 1993, 20 U.S.C. §2601 et seq.) to take family bereavement leave. The purpose, requirements, scheduling, and all other terms of the leave are governed by the Family Bereavement Leave Act. Eligible employees may use family bereavement leave, without any adverse employment action, for: (1) attendance by the bereaved staff member at the funeral or alternative to a funeral of a covered family member, which includes an employee's child, stepchild, domestic partner, sibling, parent, mother-in-law, father-in-law, grandchild, grandparent, or stepparent (2) making arrangements necessitated by the death of the covered family member, (3) grieving the death of the covered family member, or (4) absence from work due to a Significant Event, which includes: (i) miscarriage, (ii) an unsuccessful round of intrauterine insemination or of an assisted reproductive technology procedure, (iii) a failed adoption match or an adoption that is not finalized because it is contested by another party, (iv) a failed surrogacy agreement, (v) a diagnosis that negatively impacts pregnancy or fertility, or (vi) a still birth. An employee qualifying for leave due to a Significant Event will not be required to identify which specific reason applies to the employee's request.

The leave must be completed within 60 days after the date on which the employee received notice of the death of the covered family member or the date on which an event under item (4) above occurs. However, in the event of the death of more than one covered family member in a 12-month period, an employee is entitled to up to a total of six weeks of bereavement leave during the 12-month period, subject to certain restrictions under State and federal law. Other existing forms of leave may be substituted for the leave provided in the Family Bereavement Leave Act. This policy does not create any right for an employee to take family bereavement leave that is inconsistent with the Family Bereavement Leave Act.

### **Child Extended Bereavement Leave**

Unpaid leave from work is available to employees who experience the loss of a child by suicide or homicide. The Child Extended Bereavement Leave Act governs the duration, scheduling, continuity of benefits, and all other terms of the leave. Accordingly, if the District employs 250 or more employees on a full-time basis, an employee is entitled to a total of 12 weeks of unpaid leave within one year after the employee notifies the District of the loss. An employee may elect to substitute other forms of leave to which the employee is entitled for the leave provided under the Child Extended Bereavement Leave Act.

### **COMPENSATORY TIME-OFF (5:310)**

This policy governs the use of compensatory time-off by employees who: (1) are covered by the overtime provisions of the Fair Labor Standards Act, 29 U.S.C. §201 et seq., and (2) are not represented by an exclusive bargaining representative.

Employees may be given 1-1/2 hours of compensatory time-off in lieu of cash payment for each hour of overtime worked. Other than as provided below, at no time may an employee's accumulated compensatory time-off exceed 40 hours. If an employee accrues the maximum number of compensatory time-off hours, the employee: (1) is paid for any additional overtime hours worked, at the rate of one and one-half times the employee's regular hourly rate of pay, and (2) does not accumulate compensatory time-off until the employee uses an equal amount of accrued time-off.

An employee who has accrued compensatory time-off shall be permitted to use such time in at least half-day components provided such requests do not unduly disrupt the District's operations. The employee's supervisor must approve a request to use compensatory time-off.

Upon termination of employment, an employee will be paid for unused compensatory time at the higher of:

1. The average regular rate received by such employee during the last three years of employment; or
2. The final regular rate received by such employee.

Compensatory time-off is time during which the employee is not working and is, therefore, not counted as "hours worked" for purposes of overtime compensation.

#### Implementation

The Superintendent or designee shall implement this policy in accordance with the FLSA. In the event of a conflict between the policy and the FLSA, the latter shall control.

### **HEALTH INSURANCE**

The District provides a group health insurance plan for all eligible full-time employees. The District may pay a portion of health insurance premiums for each eligible full-time employee. Employees may purchase dependent coverage at an additional cost. **See official plan documents for complete details.**

### **LIFE INSURANCE**

The District may provide Life Insurance for eligible full-time employees. **See official plan documents for complete details.**

### **DENTAL INSURANCE**

The District provides a group dental insurance plan for all eligible full-time employees. The District may pay a portion of dental insurance premiums for each eligible full-time employee. Employees may purchase dependent coverage at an additional cost. **See official plan documents or Insurance administrator for complete details.**

### **RETIREMENT**

We provide a retirement plan for all eligible full-time employees. **Please see Summary Plan Description for details.**

### **ILLINOIS MUNICIPAL RETIREMENT FUND**

Employees who are expected to work 600 or more hours per year must contribute to the Illinois Municipal Retirement Fund ("IMRF"). These employees are considered participating members of the IMRF and will have the appropriate deductions made from their salary. The District will contribute the amount designated by the IMRF in the name of the employee. Employees who are expected to work less than 600 hours/year are considered nonparticipating members of the Fund.



**ANCILLARY INSURANCE COVERAGE**

Employees interested in disability, cancer, or intensive care insurance may purchase this on their own running the premiums through our payroll deduction program. The District offers this as an administrative service only to the employee. Inquires relating to any ancillary insurance should be directed to the insurance agent. The District makes no representations with respect to any ancillary insurance coverage and any administrative assistance provided shall not be construed as endorsing such insurance coverage. For more information, please contact the office.

**COBRA INSURANCE**

The Consolidated Omnibus Budget Reconciliation Act (COBRA) gives employees and their dependents (qualified beneficiaries) the opportunity to continue health insurance coverage under our health plan when a "qualifying event" would normally result in the loss of eligibility. Some common qualifying events are resignation, termination of employment, or death of an employee; a reduction in an employee's hours or a leave of absence; an employee's divorce or legal separation; or a dependent child who no longer meets eligibility requirements.

Under COBRA, the employee or beneficiary pays the full cost of coverage of the group rates plus administration fee.

We provide each eligible employee with a written notice describing rights granted under COBRA when the employee becomes eligible for coverage under the health insurance plan. The notice contains important information about the employee's rights and obligations.

It is the employee's responsibility to inform the Plan Administrator of the following events for eligibility purposes:

- The participant becomes entitled to Medicare benefits
- The participant and spouse become divorced
- The participant and spouse become legally separated
- A participant's child ceases to be a dependent under the plan

**FLEXIBLE SPENDING ACCOUNTS (SECTION 125)**

Employees can save tax dollars by enrolling in this multi-option plan. This account allows employees to withhold pre-tax dollars from their paycheck to pay:

1. Group Health Insurance Premiums
2. Medical Reimbursement, including dental and optical expenses, out-of-pocket expenses such as meeting deductibles, etc.
3. Child or dependent care expenses
4. Premiums for any qualified individual ancillary insurance (disability coverage may not be deducted pretax) you may have purchased.

The benefits eligibility date must have been reached for this benefit to become effective. Elections may only be changed during the annual election period, which is from November to December of each year. Allowable expenses include only those that were incurred during the plan year. Expenses may be submitted up to 60 days following the end of the plan year. Contributions not used will be forfeited in accordance with federal law.

**COURT DUTY (5:80)**

The District will pay full salary during the time an employee is absent due to court duty or, pursuant to a subpoena, serves as a witness or has a deposition taken in any school-related matter pending in court.

The District will deduct any fees that an employee receives for such duties, less mileage and meal expenses, from the employee's compensation, or make arrangements for the employee to endorse the fee check to the District.

An employee should give at least 5 days' prior notice of pending jury duty to the District.

### **UNIFORMED SERVICES EMPLOYMENT AND REEMPLOYMENT RIGHTS ACT (USERRA)**

Any employee whose absence from employment is necessitated by reason of service in the uniformed services will be granted an unpaid leave of absence and will have the right to be reemployed if he or she:

- Ensures that the District receives advance written or verbal notice of his or her service;
- Has five years or less of cumulative service in the uniformed services while with the District;
- Returns to work or applies for reemployment in a timely manner after conclusion of service; and
- Has not been separated from service with a disqualifying discharge or under other than honorable conditions.

Upon the expiration of such leave of absence, each employee will be restored to his/her former job classification or to a position of like seniority, status and pay; unless, circumstances of the District have so changed as to make it impossible or unreasonable to do so.

### **PERFORMANCE EVALUATION (5:320)**

The Superintendent is responsible for designing and implementing a program for evaluating the job performance of each educational support staff member according to standards contained in School Board policies as well as in compliance with State law and any applicable collective bargaining agreement. The standards for the evaluation program shall include, but not be limited to:

1. Each employee shall be evaluated annually, preferably before the annual salary review.
2. The direct supervisor shall provide input.
3. The employee's work quality, promptness, attendance, reliability, conduct, judgment, and cooperation shall be considered.
4. The employee shall receive a copy of the annual evaluation.
5. All evaluations shall comply with State and federal law and any applicable collective bargaining agreement.

### **FAMILY AND MEDICAL LEAVE (5:185)**

#### **Leave Description**

An eligible employee may use unpaid family and medical leave (FMLA leave), guaranteed by the federal Family and Medical Leave Act. The U.S. Department of Labor's rules (federal rules) implementing FMLA, as they may be amended from time to time, control FMLA leave.

An eligible employee may take FMLA leave for up to a combined total of 12 weeks each 12-month period, beginning September 1 and ending August 31 or the next year.

During a single 12-month period, an eligible employee's FMLA leave entitlement may be extended to a total of 26 weeks of unpaid leave to care for a covered servicemember (defined in the federal rules) with a serious injury or illness. The "single 12-month period" is measured forward from the date the employee's first FMLA leave to care for the covered servicemember begins.

While FMLA leave is normally unpaid, the District will substitute an employee's accrued compensatory time-off and/or paid leave for unpaid FMLA leave. All policies and rules regarding

the use of paid leave apply when paid leave is substituted for unpaid FMLA leave. Any substitution of paid leave for unpaid FMLA leave will count against the employee's FMLA leave entitlement. Use of FMLA leave shall not preclude the use of other applicable unpaid leave that will extend the employee's leave beyond 12 weeks, provided that the use of FMLA leave shall not serve to extend such other unpaid leave. Any full workweek period during which the employee would not have been required to work, including summer break, winter break and spring break, is not counted against the employee's FMLA leave entitlement.

FMLA leave is available in one or more of the following instances:

1. The birth and first-year care of a son or daughter.
2. The adoption or foster placement of a son or daughter, including absences from work that are necessary for the adoption or foster care to proceed and expiring at the end of the 12-month period beginning on the placement date.
3. The serious health condition of an employee's spouse, child, or parent.
4. The employee's own serious health condition that makes the employee unable to perform the functions of his or her job.
5. The existence of a qualifying exigency arising out of the fact that the employee's spouse, child, or parent is a military member on (covered) active duty (as provided in federal rules.)
6. To care for the employee's spouse, child, parent, or next of kin who is a covered servicemember with a serious injury or illness, as provided by federal rules.

If spouses are employed by the District, they may together take only 12-weeks for FMLA leaves when the reason for the leave is 1 or 2, above, or to care for a parent with a serious health condition, or a combined total of 26 weeks for item 6 above.

An employee may be permitted to work on an intermittent or reduced-leave schedule in accordance with federal rules.

#### Eligibility

To be eligible for FMLA leave, an employee must be employed at a worksite where at least 50 employees are employed within 75 miles. In addition, one of the following provisions must describe the employee:

1. The employee has been employed by the District for at least 12 months and has been employed for at least 1,000 hours of service during the 12-month period immediately before the beginning of the leave. The 12 months an employee must have been employed by the District need not be consecutive. However, the District will not consider any period of previous employment that occurred more than seven years before the date of the most recent hiring, except when the service break is due to fulfillment of a covered service obligation under the employee's Uniformed Services Employment and Reemployment Rights Act (USERRA), 38 U.S.C. 4301, et seq., National Guard or Reserve military service or when a written agreement exists concerning the District's intention to rehire the employee.
2. The employee is a full-time classroom teacher.

#### Requesting Leave

If the need for the FMLA leave is foreseeable, an employee must provide the Superintendent or designee with at least 30 days' advance notice before the leave is to begin. If 30 days' advance notice is not practicable, the notice must be given as soon as practicable. The employee shall make a reasonable effort to schedule a planned medical treatment so as not to disrupt the District's operations, subject to the approval of the health care provider administering the treatment. The employee shall provide at least verbal notice sufficient to make the Superintendent or designee aware that he or she needs FMLA leave, and the anticipated timing and duration of the leave.

Failure to give the required notice for a foreseeable leave may result in a delay in granting the requested leave until at least 30 days after the date the employee provides notice.

#### Certification

Within 15 calendar days after the Superintendent or designee makes a request for certification for a FMLA leave, an employee must provide one of the following:

1. When the leave is to care for the employee's covered family member with a serious health condition, the employee must provide a complete and sufficient certificate signed by the family member's health care provider.
2. When the leave is due to the employee's own serious health condition, the employee must provide a complete and sufficient certificate signed by the employee's health care provider.
3. When the leave is to care for a covered servicemember with a serious illness or injury, the employee must provide a complete and sufficient certificate signed by an authorized health care provider for the covered servicemember.
4. When the leave is because of a qualified exigency, the employee must provide: (a) a copy of the covered military member's active duty orders or other documentation issued by the military indicating that the military member is on active duty or call to active duty status, and the dates of the covered military member's active duty service, and (b) a statement or description signed by the employee, of appropriate facts regarding the qualifying exigency for which FMLA leave is requested.

The District may require an employee to obtain a second and third opinion at its expense when it has reason to doubt the validity of a medical certification.

The District may require recertification at reasonable intervals, but not more often than once every 30 days. Regardless of the length of time since the last request, the District may request recertification when the (1) employee requests a leave extension, (2) circumstances described by the original certification change significantly, or (3) District receives information that casts doubt upon the continuing validity of the original certification. Recertification is at the employee's expense and must be provided to the District within 15 calendar days after the request. The District may request recertification every 6 months in connections with any absence by an employee needing an intermittent or reduced schedule leave for conditions with a duration in excess of 6 months.

Failure to furnish a complete and sufficient certification on forms provided by the District may result in a denial of the leave request.

#### Continuation of Health Benefits

During FMLA leave, employees are entitled to continuation of health benefits that would have been provided if they were working. Any share of health plan premiums being paid by the employee before taking the leave, must continue to be paid by the employee during the FMLA leave. A District's obligation to maintain health insurance coverage ceases if an employee's premium payment is more than 30 days late and the District notifies the employee at least 15 days before coverage will cease.

#### Changed Circumstances and Intent to Return

An employee must provide the Superintendent or designee reasonable notice of changed circumstances (i.e., within 2 business days if the changed circumstances are foreseeable) that will alter the duration of the FMLA leave. The Superintendent or designee, taking into consideration all of the relevant facts and circumstances related to an individual's leave situation, may ask an employee who has been on FMLA leave for 8 consecutive weeks whether he or she intends to return to work.

### Return to Work

If returning from FMLA leave occasioned by the employee's own serious health condition, the employee is required to obtain and present certification from the employee's health care provider that he or she is able to resume work.

An employee returning from FMLA leave will be given an equivalent position to his or her position before the leave, subject to: (1) permissible limitations the District may impose as provided in the FMLA or implementing regulations and (2) the District reassignment policies and practices.

Classroom teachers may be required to wait to return to work until the next semester in certain situations as provided by the FMA regulations.

### Implementation

The Superintendent or designee shall ensure that (1) all required notices and responses to leave requests are provided to employees in accordance with the FMLA; and (2) this policy is implemented in accordance with the FMLA. In the event of a conflict between the policy and the FMLA or its regulations, the latter shall control. The terms used in this policy shall be defined as the FMLA regulations.

## **VICTIMS' ECONOMIC SECURITY AND SAFETY ACT**

### Leaves for Victims of Domestic Violence, Sexual Violence, or Gender Violence

An unpaid leave from work is available to any staff member who: (1) is a victim of domestic violence, sexual violence, or gender violence, or (2) has a family or household member who is a victim of such violence whose interests are not adverse to the employee as it relates to the domestic violence, sexual violence, gender violence, or any other crime of violence. The unpaid leave allows the employee to seek medical help, legal assistance, counseling, safety planning, and other assistance, and to grieve and attend to matters necessitated by the death of a family or household member who is killed in a crime of violence, without suffering adverse employment action.

The Victims' Economic Security and Safety Act governs the purpose, requirements, scheduling, and continuity of benefits, and all other terms of the leave. Accordingly, if the District employs at least 50 employees, and subject to any exceptions in VESSA, an employee is entitled to a total of 12 work weeks of unpaid leave during any 12-month period. Neither the law nor this policy creates a right for an employee to take unpaid leave that exceeds the unpaid leave time allowed under, or is in addition to the unpaid leave time permitted by, the federal Family and Medical Leave Act of 1993 (29 U.S.C. §2601 et seq.).

# General Rules of Conduct

To assure orderly operations and provide the best possible work environment, we expect employees to follow rules of conduct, performance, and attendance. This will protect the interests of all employees and the District.

For the guidance of all employees, listed below are some rules of conduct, performance and attendance. Violation of any of these rules may result in disciplinary action, including discharge, at the District's discretion. This list is by way of illustration only and should not be deemed to limit the District's right to discipline or discharge for other reasons not specifically listed.

The following acts are prohibited and constitute violations of District Rules of Conduct:

1. Possession of any dangerous weapon or explosive device while on District property.
2. Reporting to work under the influence of, or introducing, possessing, or using on District property, any intoxicating or controlled substance (including drug paraphernalia) not prescribed by a licensed physician. Employees with prescription drugs, which could impair motor function, must advise their administrator when first reporting for work after receiving such a prescription.
3. Fighting with, threatening, intimidating, coercing, physically abusing or interfering with another employee or persons doing business with the District.
4. Taking or receiving, without authorization, goods, materials, equipment or property belonging to the District, employees, or persons doing business with the District.
5. Practicing or promoting discrimination against or harassment of another employee or group of employees on the basis of race, color, national origin, sex, sexual orientation, age, religion, or disability.
6. Willful destruction of property, including but not limited to falsification of report(s); employment application; tallies; data; time card(s); commission of deliberate error; concealment of such acts committed by employee or others.
7. Insubordination (refusal to carry out administrator's instructions). Using profane or abusive language or displaying the abusive conduct toward an employee or person.
8. Participation or instigation of horseplay, scuffling, pranks, and/or otherwise creating a disturbance in the workplace.
9. Committing any felony or misdemeanor crimes as prohibited by federal, state, or local laws or failure to report unlawful conduct.
10. Transaction of personal business, including telephone calls, during working hours (excluding lunch) without consent of an administrator.
11. Use of seatbelt is required while riding in or operating a District vehicle on public roads.
12. Negligent work performance, concealment or failure to report errors, which may result in economic damage or adverse conditions.
13. Sleeping during working time.
14. Failure to report an accident or injury to the appropriate administrator.
15. Excessive employee absenteeism or tardiness or failure to notify of absence or tardiness within an hour of the scheduled work time.
16. Leaving District premises during working hours without permission. Unauthorized entrance on District property during non-working hours.
17. Working in an unsafe manner or violating District safety policies and procedures.
18. Falsification of employee applications.
19. Improper use of sick leave or unpaid personal leave.
20. Unauthorized use of District equipment.
21. Making modifications in equipment or buildings including heating, cooling, electrical, water or sewer systems unless authorized by job descriptions or supervisors.
22. Unauthorized possession or use of District keys, keycards, or access fobs, including master keys.

23. Bringing personally owned equipment or furniture to school without advance written authorization from the building administration. If permission is granted, the District assumes no liability for lost, damaged, or stolen personal property.
24. Promoting the services, products, ideologies (political, religious, or organizational), or goals of non-school organizations, exclusive of educational goals.
25. Failing to be truthful to the Board of Education or the administration in regard to matters relating to employment or directly related to the employee's work duties.
26. Falsifying documents, or creating documents, which are substantially misleading.
27. Making false claims for insurance or any other benefit.
28. Misrepresenting to any other person the extent of her or his job authority, or purport to act on behalf of the District when not authorized to do so.
29. Incurring expenses or entering into contracts on behalf of the District without the authority to do so.
30. Failure to conduct oneself in a same manner at all times. Failure to read, understand and apply all safety instructions related to procedures or equipment, or defeating or attempting to defeat any safety device.
31. Working under the influence of any intoxicating liquor or illegal drug; concealing or maintaining any intoxicating liquor or illegal drug in or on any school property or at any school sponsored event; working while bearing the odor of alcohol or illegal drugs.
32. Engaging in acts that are dangerous to property, health, safety, or welfare of the District, students, other employees, or the general public. This rule shall not be deemed violated by accidental acts that are not intended by the employee, but the employee shall act with prudence and ordinary caution at all times.
33. Engaging in activities during non-school hours that intentionally cause injury or harm or attempt to cause injury or harm to other employees, children, their property, or the District or its property. Any employee who has been convicted of any felony offense or who has committed any criminal acts involving substantial risk of harm to other persons or property may be unsuitable for school employment and is subject to discharge, at the discretion of the Board.
34. Bringing onto school property or to any school activity firearms, ammunition, explosives, fireworks, or other substances or devices likely or capable of causing harm to persons or property.
35. Failure to report to the direct supervisor any damaged or broken equipment or other school property in his or her assigned area of responsibility.
36. The loss of driving rights or privileges for any position requiring a current driver's license shall be cause for dismissal. The employee must advise the District of lost driving privileges.
37. Failure to maintain or the loss of any certificate, license, or other document issued by any governmental entity or office necessary or required for the employee's position shall be cause for dismissal.
38. Failure to promptly deposit, report or account for any funds, gate receipts, or other money or property of the District, students, or others coming into the employee's hands as a result of the employee's work, responsibilities, duties, or employment.
39. Unauthorized use, retaining without authorization, or stealing money or property of students, other employees, or others.
40. Release, disclosure, or granting access to information found in any student record except in the exercise of job responsibilities, or when such disclosure would constitute a violation of the Illinois School Student Records Act or the Family Educational Rights and Privacy Act. Employees may seek clarification of their responsibilities under this rule from their immediate supervisor.
41. Release, disclosure, or granting access to information found in any employee file or disclosure of confidential information about other employees without advance authorization from a supervisor. Employees may seek clarification of their responsibilities under this rule from their immediate supervisor.

42. Educational support employees shall not discipline students except as authorized by job description.
43. Fighting and physical altercations of all kinds. Employees may take reasonable steps to protect themselves from physical violence and may reasonably restrain a student to protect the employee, another employee, other students, or District property.
44. Engaging in any behavior while at school, at its sponsored events, or during work hours, which constitutes gross disrespect for the property or rights of others including but not limited to insensitive remarks about another person's race, color, religion, creed, national origin, sex, age, ancestry, or marital status. Such remarks will result in employee discipline.
45. Using profanity when speaking to parents or students, or address other employees utilizing profanity.
46. Engaging in any sexual or romantic relationship with any student. Employees shall not make sexually suggestive remarks or engage in sexual conduct or acts on or towards students. Employees shall not illegally discriminate against students on the basis of the student's sex. Employees shall personally report evidence of any such activity to the Superintendent. No employee shall instruct or dissuade another employee from making such a report.
47. Making unwelcome sexual advances toward or request sexual favors from other employees. Engaging in verbal or physical conduct or communication of a sexual nature which constitutes sexual harassment or otherwise creates an intimidating, hostile, or offensive work environment.
48. Aide, solicit or engage any student, or any employee in any activity that is illegal or immoral. Employees shall personally report evidence of illegal or immoral activity to the Superintendent.
49. Conviction of any felony offense involving dishonesty or violence, or that would have precluded an employee's initial employment as a matter of law irrespective of the jurisdiction, shall be cause for dismissal.
50. Willfully refusing to obey written or oral instructions of the immediate supervisor, a member of the administrative staff.
51. Willfully refusing to obey the policies, rules and regulations of the Board of Education or attempt to violate the Board of Education policy, rule or regulation.
52. Willful behavior that interrupts the orderly process of school affairs.
53. Repeated minor incidents of misbehavior may be cause for discharge, if other disciplinary measures have failed to deter misconduct.
54. To knowingly surrender or deliver a child to a person other than the child's parents (or in the case of divorce, the custodial parent) or other guardian, without the approval from the parent, legal guardian, or the building principal. No employee shall intentionally surrender or deliver a child to a person who is prohibited such contact by an Order of Protection, or other Order of Court
55. Failure to personally report evidence of child abuse to the DCFS Hotline. No employee shall instruct or dissuade another employee from making such a report. The employee shall notify the building principal that a report was made.
56. Outside employment that may interfere with the performance of job duties.
57. Accepting unauthorized rebates, gifts, gratuities, premiums or promotional materials from suppliers for personal use or gain.
58. Utilizing District computers, networks or Internet access to view, obtain, or download any pornographic or sexually explicit material.
59. Failing to maintain strict confidentiality of passwords or other security techniques or accessing any computer, network, server, or other information thereon that the employee is not authorized to access.
60. Violation of any copyright, including, but not limited to copyright in software, information, music, data or other material obtained over the Internet.



## Acknowledgement, Agreement and Receipt of Employee Handbook

The undersigned hereby acknowledges receipt of a copy of the Richland County CUSD #1 Employee Handbook. The undersigned hereby acknowledges and agrees that nothing contained in the employee handbook including policies, practices, and benefits stated herein are intended to create any contractual right, express or implied, to employment or to any particular term or condition of employment. The District retains the right to revise, amend this handbook, or terminate any policy unilaterally without notice at any time, and the employee's continued employment will be deemed acceptance of such revisions and modifications. I understand I am required to read and apply all work rules. I understand that if I violate any work rule I may be disciplined. I further acknowledge that discipline, in some circumstances, may include my immediate discharge.

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Employee Signature

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Witness Signature

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Date

(This acknowledgement and agreement will be retained in the employee's personnel file).